

MEMORANDA

OF

DECISIONS RENDERED DURING THE PERIOD EMBRACED IN THIS VOLUME

[950 NE2d 137, 926 NYS2d 401]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SHAWN
HUNTER, Appellant.

Argued April 28, 2011; decided June 2, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 11, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Monroe County (Francis A. Affronti, J.), which had convicted defendant, upon his plea of guilty, of criminal sale of a controlled substance in the third degree, and criminal possession of a controlled substance in the third degree.

People v Hunter, 70 AD3d 1343, reversed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review — Standing of Defendant to Challenge Search and Seizure

1. The People must timely object to a criminal defendant's failure to prove standing to challenge an allegedly illegal search in order to preserve that issue for appellate review. Accordingly, in a drug prosecution in which the police effected a warrantless entry into defendant's mother's apartment, apprehending defendant and recovering alleged "buy and bust" money, the Appellate Division erred in entertaining the issue of whether defendant lacked standing to challenge the search of the apartment since the People did not challenge at the suppression hearing defendant's claim that he possessed a legitimate expectation of privacy in the apartment, and therefore did not assert a claim that defendant lacked standing. Given that the primary reason for demanding notice through objection or motion in a trial court, as with any specific objection, is to bring the claim to the trial court's attention, the People were required to alert the suppression court if they believed that the defendant had failed to meet his burden to establish standing. The preservation requirement also alerts the adverse party of the need to develop a record for appeal.

Crimes — Appeal — Preservation of Issue for Review — Standing of Defendant to Challenge Search and Seizure

2. To the extent that *People v McCall* (51 AD3d 822 [2d Dept 2008]), *People v Hooper* (245 AD2d 1020 [4th Dept 1997]), *People v Banks* (202 AD2d 902 [3d Dept 1994]) and similar decisions may be read to not require the People to timely object to a defendant's lack of standing to challenge the legality of a search and seizure so as to preserve that issue for appellate review, they are no longer to be followed.

APPEARANCES OF COUNSEL

Timothy P. Donaher, Public Defender, Rochester (Matthew J. Clark of counsel), for appellant.

Michael C. Green, District Attorney, Rochester (Joseph D. Waldorf of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and the matter remitted to that court for consideration of issues raised but not determined on the appeal to that court.

[1] It is well settled that a defendant seeking suppression of evidence obtained as the result of an alleged illegal search must prove standing to challenge the search (see *People v Ramirez-Portoreal*, 88 NY2d 99, 108 [1996]). At issue in this appeal is the related question of whether the People must timely object to a defendant's failure to prove standing in order to preserve that issue for appellate review. We previously answered this question in the affirmative in *People v Stith* (69 NY2d 313 [1987]), and reiterate that holding today.

In October 2005, officers effected a warrantless entry into an apartment, apprehended defendant and recovered buy money from a "buy and bust" transaction that defendant had engaged in with an undercover officer. Defendant moved to suppress the buy money, claiming that it was obtained as the result of an unlawful warrantless entry and search of his home. The People countered that the entry was justified under the doctrines of "exigent circumstances" and/or "hot pursuit." They also contended that the search of the apartment was supported by the written consent of the tenant, defendant's mother.

At the suppression hearing, the People called two police officers who were engaged in the pursuit; defendant called no witnesses. Supreme Court denied defendant's motion to suppress, upholding the warrantless entry based upon the "exigent circumstances" and "hot pursuit" exceptions to the warrant

requirement. Since the issue of defendant's standing was not raised, the court had no occasion to rule on that issue.

Defendant then pleaded guilty to criminal possession and sale of a controlled substance in the third degree and promptly appealed his conviction arguing that Supreme Court erred in its suppression ruling. The Appellate Division affirmed the conviction, albeit on a ground that had not been presented to the suppression court, holding that defendant "failed to establish that he had standing to challenge the search of the apartment in which he was arrested" (70 AD3d 1343, 1344 [4th Dept 2010]). In light of that determination, the court declined to consider defendant's remaining arguments. A Judge of this Court granted defendant leave to appeal and we now reverse.

[2] In *People v Stith*, this Court refused to consider the People's argument that the defendant lacked standing to challenge the legality of the seizure of a weapon, noting that such argument "was raised for the first time at the Appellate Division and thus is not preserved for our review" (69 NY2d at 320). Since our pronouncement in *Stith*, however, three of the four appellate departments have issued rulings counter to this holding, concluding that because it is the defendant's initial burden to establish standing, the People may raise defendant's lack of standing for the first time on appeal (see *People v McCall*, 51 AD3d 822, 822 [2d Dept 2008], *lv denied* 11 NY3d 856 [2008]; *People v Hooper*, 245 AD2d 1020, 1021 [4th Dept 1997]; *People v Banks*, 202 AD2d 902, 904 [3d Dept 1994], *revd on other grounds* 85 NY2d 558 [1995]; but see *People v Graham*, 211 AD2d 55, 57-58 [1st Dept 1995], *lv denied* 86 NY2d 795 [1995] [finding unpreserved the People's contention that the defendant lacked standing to challenge a search, noting that the People failed to raise the issue in either their motion opposing suppression or at the hearing]). To the extent that those and similar decisions may be read to not require the People to timely object to a defendant's lack of standing so as to preserve that issue for appellate review, they are no longer to be followed.

[1] Here, the People did not challenge defendant's claim that he possessed a legitimate expectation of privacy in his mother's apartment, and therefore did not assert a claim that defendant lacked standing. Given that the primary reason for "demanding notice through objection or motion in a trial court, as with any specific objection, is to bring the claim to the trial court's attention" (*People v Gray*, 86 NY2d 10, 20 [1995]), the People are required to alert the suppression court if they believe that the

defendant has failed to meet his burden to establish standing (see *People v Carter*, 86 NY2d 721, 722-723 [1995] [setting forth the premise that a defendant “must allege standing to challenge the search and, *if the allegation is disputed*, must establish standing” (emphasis supplied)]). The preservation requirement serves the added purpose of alerting the adverse party of the need to develop a record for appeal. Here, because the People failed to preserve the issue, the Appellate Division erred in entertaining it.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[949 NE2d 497, 925 NYS2d 406]

WENDY HAZEN, Appellant, v BOARD OF EDUCATION OF CITY
SCHOOL DISTRICT OF CITY OF NEW YORK et al., Respondents.

Decided June 2, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered July 20, 2010. The Appellate Division affirmed an order of the Supreme Court, New York County (Shirley Werner Kornreich, J.), entered in a proceeding pursuant to CPLR article 78, which had denied a petition to expunge certain letters from petitioner’s personnel file, and directed entry of judgment dismissing the proceeding with prejudice.

In a proceeding to compel respondents to expunge certain letters from the personnel file of petitioner teacher, the Appellate Division concluded, in part, that petitioner was not entitled to a hearing since article 21 of the relevant collective bargaining agreement set forth a teacher’s due process rights to review and challenge entries in her personnel file and that there was no reason to conclude that respondents failed to follow the procedural requirements imposed by that contract or otherwise acted unlawfully. The Appellate Division found that the challenged acts were not disciplinary or penalty measures related to the filing or disposition of formal charges, such as would entitle petitioner to a hearing under Education Law § 3020-a.

Hazen v Board of Educ. of City School Dist. of City of N.Y., 75 AD3d 471, affirmed.

HEADNOTE

Schools — Teachers — Waiver of Statutory Dispute Resolution Procedure

In a proceeding to compel respondent board of education to expunge certain letters from petitioner's personnel file, an order of the Appellate Division, which affirmed the denial of the petition, was affirmed.

APPEARANCES OF COUNSEL

Wendy Hazen, appellant pro se.

Michael A. Cardozo, Corporation Counsel, New York City (Julian L. Kalkstein of counsel), for respondents.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs (*see Matter of Hickey v New York City Dept. of Educ.*, 17 NY3d 729 [2011] [decided today]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[952 NE2d 993, 929 NYS2d 1]

In the Matter of HELEN HICKEY, Appellant, v NEW YORK CITY DEPARTMENT OF EDUCATION, Respondent.

In the Matter of RACHEL COHN, Appellant, v BOARD OF EDUCATION OF THE CITY SCHOOL DISTRICT OF THE CITY OF NEW YORK et al., Respondents.

Argued April 28, 2011; decided June 2, 2011

SUMMARY

APPEAL, in the first above-entitled proceeding, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 3, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Sheila Abdus-Salaam, J.), entered in a proceeding pursuant to CPLR article 78, which had directed expungement of a letter from petitioner's personnel file, (2) denied the petition, and (3) dismissed the proceeding. The following question was certified

by the Appellate Division: “Was the order of this Court, which reversed the [judgment] of the Supreme Court, properly made?”

APPEAL, in the second above-entitled proceeding, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 3, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Supreme Court, New York County (Carol R. Edmead, J.; op 2009 NY Slip Op 30090[U]), entered in a proceeding pursuant to CPLR article 78, which had directed expungement of a disciplinary letter from petitioner’s personnel file, (2) denied the petition, and (3) dismissed the proceeding. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the [judgment] of the Supreme Court, properly made?”

Matter of Hickey v New York City Dept. of Educ., 74 AD3d 458, affirmed.

Matter of Cohn v Board of Educ. of the City School Dist. of the City of N.Y., 74 AD3d 457, affirmed.

HEADNOTE

Schools — Teachers — Waiver of Statutory Dispute Resolution Procedure

Petitioner teachers were not entitled to have “letters of reprimand” expunged from their personnel files on the ground that respondent board of education failed to follow the disciplinary procedures set forth in Education Law § 3020-a, since petitioners’ union waived those procedures and agreed to replace them with alternate disciplinary procedures contained in a collective bargaining agreement (CBA) as authorized by Education Law § 3020 (4) (a). The broad CBA provision clearly encompassed written reprimands, and the disciplinary letters at issue fell within its purview. Comparison of the statute and the CBA provision revealed that the procedure in the CBA was significantly different than, and incompatible with, the procedure in section 3020-a, meaning that the parties to the contract could not have intended both procedures to simultaneously apply. Their history of collective bargaining indicated, with respect to the placement of written materials in tenured teachers’ files, that petitioners’ union was well aware that, by adopting the CBA provision, it was agreeing to substitute that procedure for other due process procedures that had previously been in place. Therefore, there was ample basis to conclude that the union knowingly waived the procedural rights granted in section 3020-a in that limited arena.

APPEARANCES OF COUNSEL

Richard M. Krinsky, Brooklyn, for appellant in the first above-entitled proceeding.

Sherry B. Bokser, New York City, *Richard E. Casagrande*, *Ariana A. Gambella* and *Stroock & Stroock & Lavan, LLP*, for appellant in the second above-entitled proceeding.

Michael A. Cardozo, Corporation Counsel, New York City (*Dona B. Morris* and *Francis F. Caputo* of counsel), for respondents in the first and second above-entitled proceedings.

OPINION OF THE COURT

MEMORANDUM.

The orders of the Appellate Division should be affirmed, with costs, and the certified questions should not be answered upon the ground that they are unnecessary.

Petitioners Hickey and Cohn, two tenured teachers in the New York City school system, commenced these CPLR article 78 proceedings against the Board of Education for orders compelling respondent to expunge “letters of reprimand” from their personnel files for failure to follow Education Law § 3020-a procedures. The letter placed in Hickey’s personnel file indicated that she demonstrated incompetence and “unsatisfactory professional attitude” in preparing students for a field day. The letter placed in Cohn’s file detailed a complaint filed with, and substantiated by, the Department of Education’s Office of Equal Opportunity; the complaint stemmed from an incident where Cohn allegedly told the principal at her school, during a heated discussion, to watch her “Latin temper.” Both letters were placed in petitioners’ files in 2008 and indicated that the matter “may lead to further disciplinary action.” Respondent contends that the letters were properly placed in petitioners’ files because, pursuant to the 2007-2009 Collective Bargaining Agreement (CBA), petitioners’ union waived the section 3020-a procedure with respect to the placement of letters of reprimand in tenured teachers’ files and agreed to replace it with a different procedure described in Article 21A.

In each case, Supreme Court granted the petitions and directed expungement of the disciplinary letters from petitioners’ files. The Appellate Division reversed the orders and denied the petitions (*Matter of Hickey v New York City Dept. of Educ.*, 74 AD3d 458 [2010]; *Matter of Cohn v Board of Educ. of the City School Dist. of the City of N.Y.*, 74 AD3d 457 [2010]).

Education Law § 3020 (1) provides: “No person enjoying the benefits of tenure shall be disciplined or removed during a term of employment except for just cause and in accordance with the procedures specified in section [3020]-a of this article or in accordance with alternate disciplinary procedures contained in a collective bargaining agreement.” While “discipline” is not defined in the statute, section 3020-a (4) (a) authorizes a

hearing officer to impose as a penalty “a written reprimand, a fine, suspension . . . without pay, or dismissal.” Section 3020 (4) (a) further states:

“Notwithstanding any inconsistent provision of law, the procedures set forth in section [3020]-a of this article . . . may be modified by agreements negotiated between the city school district of the city of New York and any employee organization representing employees or titles that are or were covered by any memorandum of agreement executed by such city school district and the united federation of teachers on or after [June 10, 2002].”

In this case, we assume, though we do not decide, that the letters petitioners complain of here constitute “discipline” for purposes of this statute.

Pursuant to section 3020, a CBA negotiated between respondent and the United Federation of Teachers, petitioners’ union, can modify or waive the section 3020-a procedures. We agree with the Appellate Division that, insofar as Article 21A of the 2007-2009 CBA addresses the procedure governing placement of written reprimands in tenured teachers’ files, it effectuated a limited waiver of Education Law § 3020-a procedural rights. Article 21A of the 2007-2009 CBA details due process and review procedures concerning teachers’ files. Subdivision (1) advises that “[n]o material derogatory to a teacher’s conduct, service, character or personality shall be placed in the files unless the teacher has had an opportunity to read the material.” It further provides that the teacher shall acknowledge reading “such material by affixing his/her signature . . . with the understanding that such signature . . . does not necessarily indicate agreement with its content.” Subdivision (2) grants teachers “the right to answer any material filed” and the “answer shall be attached to the file copy.” Subdivision (5) prohibits members from grieving material in the file, “except that if accusations of corporal punishment or verbal abuse against a UFT-represented employee are found to be unsubstantiated, all references to the allegations will be removed from the employee’s personnel file.” It further emphasizes: “the teacher shall have the right to append a response to any letter. If disciplinary charges do not follow, the letter and response shall be removed from the file three years from the date the original material is placed in the file.”

Article 21A is a broad provision that clearly encompasses written reprimands and the disciplinary letters at issue here fell

within the purview of Article 21A. Comparison of the statute and the CBA provision reveals that the procedure in Article 21A is significantly different than, and incompatible with, the procedure in Education Law § 3020-a, meaning that the parties to the contract could not have intended both procedures to simultaneously apply. Their history of collective bargaining indicates, with respect to the placement of written materials in tenured teachers' files, petitioners' union was well aware that, by adopting Article 21A, it was agreeing to substitute that procedure for other due process procedures that had previously been in place. Therefore, there is ample basis to conclude that the union knowingly waived the procedural rights granted in Education Law § 3020-a in this limited arena. Because the letters at issue are not subject to section 3020-a procedures, petitioners are not entitled to have them expunged.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

In each case: Order affirmed, etc.

BLEECKER STREET TENANTS CORP., Respondent, v BLEEKER JONES LLC et al., Appellants, et al., Defendants.

Submitted April 4, 2011; decided June 2, 2011

Reported below, 65 AD3d 240.

Motion for reargument denied with \$100 costs and necessary reproduction disbursements [*see* 16 NY3d 272 (2011)].

In the Matter of the Claim of OTILIA CABALLERO, Appellant, v FABCO ENTERPRISES et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 11, 2011; decided June 2, 2011

Reported below, 77 AD3d 1028.

Motion for reargument of motion for leave to appeal denied [*see* 16 NY3d 780 (2011)].

W. JAMES CAMPERLINO, Appellant, v TOWN OF MANLIUS MUNICIPAL CORPORATION et al., Respondents, and BENITA ROGERS et al., Intervenors-Respondents.

Submitted April 4, 2011; decided June 2, 2011

Reported below, 78 AD3d 1674.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge PIGOTT taking no part.

JEANETTE CHIRICO, Respondent, v JOEL AMAKER, Appellant.

Submitted April 4, 2011; decided June 2, 2011

Reported below, 2011 NY Slip Op 66522(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

DORIS KRIEGER et al., Appellants, v McDONALD'S RESTAURANT OF NEW YORK, INC., et al., Respondents.

MICHAEL RUCKER, Appellant, v McDONALD'S RESTAURANT OF NEW YORK, INC., et al., Respondents.

Submitted March 14, 2011; decided June 2, 2011

Reported below, 79 AD3d 1827, 1829.

Motion for leave to appeal dismissed upon the ground that the orders sought to be appealed from do not finally determine the actions within the meaning of the Constitution (*see Cuadrado v New York City Tr. Auth.*, 65 AD3d 434 [2009], *lv dismissed* 14 NY3d 748 [2010]).

Judge PIGOTT taking no part.

In the Matter of LATRELL S., a Child Alleged to be Neglected. SUFFOLK COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; CHRISTINE K., Appellant. (And Another Proceeding.)

Submitted April 4, 2011; decided June 2, 2011

Reported below, 80 AD3d 618.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

JOSEPH MONTESANO, Individually and as President of Rochester Firefighters, Inc., Local 1071, IAFF, AFL-CIO, as Trustee of ROCHESTER FIREFIGHTERS ASSOCIATION MUTUAL AID FUND and on Behalf of all Other Similarly Situated Individuals Providing Fire Protection to City of Rochester, et al., Respondents, v FLOYD A. MADISON, as Chief of Fire Department of City of Rochester and as Administrator of Firefighters' Insurance Fund of City of Rochester, et al., Appellants.

Submitted April 4, 2011; decided June 2, 2011

Reported below, 81 AD3d 1412, 1413, 1414.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed the Supreme Court order granting in part respondents' motion for an order of contempt against appellants, dismissed upon the ground that such order sought to be appealed from does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Claim of SUE ANN PAIVANAS, Appellant, v THE RESOURCE CENTER et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 11, 2011; decided June 2, 2011

Reported below, 77 AD3d 993.

Motion for reargument of motion for leave to appeal denied [*see* 16 NY3d 781 (2011)].

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v HANS ALEXANDER, Appellant.

Submitted May 31, 2011; decided June 2, 2011

Reported below, 82 AD3d 619.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th

Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JORGE PAGAN, Appellant.

Submitted May 9, 2011; decided June 2, 2011

Reported below, 76 AD3d 414.

Motion for assignment of counsel granted and Steven Banks, Esq., the Legal Aid Society, 199 Water Street, New York, NY 10038 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES F. PHILLIPS, Respondent.

Submitted May 31, 2011; decided June 2, 2011

Reported below, 82 AD3d 1011.

Motion for assignment of counsel granted and Mark Diamond, Esq., Box 287356 Yorkville Station, New York, NY 10128 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v GILBERTO SOSA, Respondent.

Submitted May 23, 2011; decided June 2, 2011

Reported below, 81 AD3d 464.

Motion for assignment of counsel granted and Robert S. Dean, Esq., Center for Appellate Litigation, 74 Trinity Place, 11th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v FREDERICK E. WALKER, Appellant.

Submitted May 23, 2011; decided June 2, 2011

Reported below, 78 AD3d 1671.

Motion for assignment of counsel granted and James S. Hinman, Esq., 16 East Main Street, Suite 260, Rochester, New

York 14614 assigned as counsel to the appellant on the appeal herein.

U.S. ELECTRONICS, INC., Appellant, v SIRIUS SATELLITE RADIO, INC., Respondent.

Submitted May 31, 2011; decided June 2, 2011

Reported below, 73 AD3d 497.

Motion by the Association of the Bar of the City of New York for leave to file a brief amicus curiae on the appeal herein granted and the proposed brief is accepted as filed. Two copies of the brief must be served and 19 copies filed within seven days.

VIKING CAPITAL PARTNERS, LLC, Respondent, v ENTERPRISE BAY RIDGE, LLC, et al., Defendants. JAMES K. NOONAN, Nonparty Appellant.

Submitted March 7, 2011; decided June 2, 2011

Reported below, 77 AD3d 737.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[952 NE2d 1003, 929 NYS2d 11]

RACHEL L. ARFA et al., Appellants, v GADI ZAMIR et al., Respondents, et al., Defendants. (And Other Actions.)

Argued April 27, 2011; decided June 7, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 13, 2010. The Appellate Division (1) reversed, on the law, so much of an order of the Supreme Court, New York County (Charles E. Ramos, J.; op 2008 NY Slip Op 33348[U]), as had denied a motion by defendants Gadi Zamir and Zamir Properties, Inc. to dismiss the fifth cause of action of the verified second amended complaint seeking to recover for an alleged fraud, and (2) granted the motion. The following

question was certified by the Appellate Division: “Was the order of this Court, which reversed the order of the Supreme Court, properly made?”

Arfa v Zamir, 76 AD3d 56, affirmed.

HEADNOTE

Release — Scope of Release — Fraud

In an action to recover damages for an alleged fraud relating to the management of a real estate business, a general release contained in the management agreement providing that each party released the others and their related entities from “any and all claims . . . and causes of action, known and unknown, which they have ever had, have or may now have . . . which occurred prior to” the date of its execution, prevented plaintiffs from bringing an action for fraud based on misrepresentations predating the release. Plaintiffs failed to allege that the release was induced by a separate fraud, and they failed to allege that they justifiably relied on the individual defendant’s fraudulent misstatements in executing it. By their own admission, plaintiffs, who were sophisticated parties, had ample indication prior to the execution of the release that defendant was not trustworthy, yet they elected to release him from the very claims they subsequently brought without investigating the extent of his alleged misconduct. Dismissal of plaintiffs’ fraud cause of action was therefore appropriate.

APPEARANCES OF COUNSEL

Schlam Stone & Dolan LLP, New York City (*David J. Katz* of counsel), for appellants.

Wolf Haldenstein Adler Freeman & Herz LLP, New York City (*Eric B. Levine* and *Alan A.B. McDowell* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and the certified question answered in the affirmative.

In June 2005, plaintiffs Rachel Arfa and Alexander Shpigel executed a general agreement with defendant Gadi Zamir regarding management of their real estate business. The agreement contained a provision in which each party released the others and their related entities from “any and all claims, demands, actions, rights, suits, liabilities, interests and causes of action, known or unknown, which they have ever had, have or may now have, which in any way pertain to or arise from any matters, facts, occurrences, actions or omissions which occurred prior to” the date of the contract. This general release, which plaintiffs allege was part of a negotiated agreement meant to ease an antagonistic relationship and keep Zamir “from

destroying the value of the real estate portfolio,” prevents plaintiffs from now bringing an action for fraud based on misrepresentations predating it.

Plaintiffs have failed to allege that the release was induced by a separate fraud (*see Centro Empresarial Cempresa S.A. v América Móvil, S.A.B. de C.V.*, 17 NY3d 269 [2011] [decided today]). Additionally, they have failed to allege that they justifiably relied on Zamir’s fraudulent misstatements in executing the release. By their own admission, plaintiffs, who are sophisticated parties, had ample indication prior to June 2005 that defendant was not trustworthy, yet they elected to release him from the very claims they now bring without investigating the extent of his alleged misconduct (*see Centro*, 17 NY3d at 278; *DDJ Mgt., LLC v Rhone Group L.L.C.*, 15 NY3d 147, 153-154 [2010]). Dismissal of plaintiffs’ fraud cause of action is therefore appropriate.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order affirmed, etc.

[953 NE2d 277, 929 NYS2d 204]

CHRISTOPHER SCOTT, Appellant, v ROCKAWAY PRATT, LLC, Respondent.

Decided June 7, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered July 27, 2010. The Appellate Division modified, on the law, so much of an order of the Supreme Court, New York County (O. Peter Sherwood, J.; op 24 Misc 3d 1231[A], 2009 NY Slip Op 51684[U]), as had denied a motion by defendant for summary judgment dismissing the complaint upon a finding, among other things, that the legal base rent for purposes of calculating the rent overcharge was the rent charged on August 1, 1982. The modification consisted of vacating the base rent finding and substituting therefor a finding that the base rent was the rent charged four years before the filing of the overcharge complaint. The Appellate Division affirmed the order as modified. The following question was certified by the Appellate Division: “Was the decision and order of this Court,

which modified the order of the Supreme Court, properly made?”

Plaintiff commenced an action for rent overcharges paid under leases subject to the Rent Stabilization Law of 1969. The Appellate Division concluded that the lower courts erred in holding that rent reduction orders issued prior to the four-year statute of limitations of CPLR 213-a, and remaining in effect during the limitations period, should be used to determine the base rent for the purposes of calculating the amount of the overcharge.

Scott v Rockaway Pratt, LLC, 77 AD3d 60, reversed.

HEADNOTE

Landlord and Tenant — Rent Regulation — Rent Overcharge

In an action for rent overcharges paid under leases subject to the Rent Stabilization Law, Supreme Court properly held that calculation of the amount of rent overcharge should be made by reference to a 1982 rent reduction order, which remained in effect during the four-year limitations period.

APPEARANCES OF COUNSEL

Legal Aid Society, Brooklyn (*Stephen Myers, Patrick J. Langhenry* and *Steven Banks* of counsel), for appellant.

Sidrane & Schwartz-Sidrane, LLP, Hewlett (*Steven D. Sidrane* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, with costs, order of Supreme Court, New York County, reinstated, and certified question answered in the negative. Supreme Court (24 Misc 3d 1231[A], 2009 NY Slip Op 51684[U]) properly held that calculation of the amount of rent overcharge should be made by reference to a 1982 rent reduction order, which remained in effect during the four-year limitations period (see *Matter of Cintron v Calogero*, 15 NY3d 347 [2010]).

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

[952 NE2d 1059, 929 NYS2d 66]

JAMES V. AQUAVELLA, M.D., P.C., et al., Appellants, v RALPH S. VIOLA, M.D., Respondent.

Decided June 7, 2011

SUMMARY

APPEAL from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered December 30, 2010. The Appellate Division, with two Justices dissenting, affirmed an order of the Supreme Court, Monroe County (Kenneth R. Fisher, J.), which had granted a motion by defendant to set aside a jury verdict and dismissed the amended complaint.

Plaintiffs' amended complaint alleged that defendant breached a noncompete clause in a 1996 written employment agreement that allegedly had been incorporated in its entirety as a term and condition of a 1998 oral employment agreement.

James V. Aquavella, M.D., P.C. v Viola, 79 AD3d 1590, affirmed.

HEADNOTE**Frauds, Statute of — Sufficiency of Memorandum — Noncompete Clause**

In an action to enforce a noncompete clause in an employment agreement, the Appellate Division correctly determined that the proffered writings failed to satisfy the statute of frauds (*see* General Obligations Law § 5-701 [a] [1]), since the writings, taken together, failed to contain all of the essential terms of the alleged agreement. Specifically, the writings made no mention of the alleged incorporation of the written agreement's noncompete clause into the subsequent oral agreement between the parties.

APPEARANCES OF COUNSEL

Calihan Law, PLLC, Rochester (*Robert B. Calihan* of counsel), for appellants.

Chamberlain D'Amanda Oppenheimer & Greenfield, LLP, Rochester (*J. Michael Wood*, *Michael A. Sciortino* and *Michael T. Harren* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be affirmed, with costs.

The Appellate Division correctly determined that the proffered writings failed to satisfy the statute of frauds (*see* General

Obligations Law § 5-701 [a] [1]). The writings, taken together, fail to contain all of the essential terms of the alleged agreement. Specifically, the writings make no mention of the alleged incorporation of the written agreement's noncompete clause into the subsequent oral agreement between the parties.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs in a memorandum.

[952 NE2d 1004, 929 NYS2d 12]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v
JAZZMONE BROWN, Appellant.

Argued April 26, 2011; decided June 7, 2011

SUMMARY

APPEAL, by permission of the Chief Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered February 11, 2010. The Appellate Division affirmed a judgment of the Erie County Court (Michael L. D'Amico, J., on motion to compel defendant's appearance at a lineup; Michael F. Pietruszka, J., at suppression hearing and trial), which had convicted defendant, upon a jury verdict, of murder in the second degree, attempted murder in the second degree (two counts), criminal possession of a weapon in the second degree (three counts), and criminal possession of a weapon in the third degree.

People v Brown, 70 AD3d 1302, affirmed.

HEADNOTES

Crimes — Right to Counsel — Effective Representation — Failure to Object during Prosecutor's Summation

1. In a prosecution for murder and related crimes, defendant was not deprived of the effective assistance of counsel when his attorney failed to object to remarks the prosecutor made during summation that unfairly suggested that the community must be protected from the defendant and that defendant sold drugs. To prevail on his ineffective assistance of counsel claim on the basis of a single failure to object, defendant must show both that the objection omitted by trial counsel was a winning argument, one that would have required a mistrial, and that the objection was one that no reasonable defense lawyer, in the context of the trial, could have thought to be not worth raising. Defendant failed to meet his burden of demonstrating a lack of

strategic or other legitimate reasons for his defense lawyer's failure to object, since it was entirely plausible that counsel chose not to object because the prosecutor's remarks impugned the People's witnesses as well as defendant and therefore were consistent with his own theory that the People's witnesses were simply not credible. It was their veracity, not defendant's, that was at issue.

Crimes — Identification of Defendant — Lineup

2. In a prosecution for murder and related crimes, the lineup in which defendant was identified by two witnesses was not unduly suggestive. The fact that the witnesses knew that the suspect whom they had tentatively identified from a photographic array would be in a lineup did not, under the circumstances, present a serious risk of influencing the witnesses' identifications of defendant from the lineup.

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Timothy P. Murphy, David C. Schopp* and *Barbara J. Davies* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Matthew B. Powers* and *Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Jazzmone Brown was convicted, after a jury trial, of murder in the second degree and other crimes, for the shooting of Salomon DeJesus, in Buffalo in 2002.

Defendant's principal argument on appeal is that his trial counsel's failure to object to certain remarks made by the prosecutor in summation constituted ineffective assistance of counsel and deprived him of a fair trial. The People do not contest defendant's characterization of the remarks as an improper "safe streets" appeal—one that attempts to obtain a conviction unfairly, by suggesting to the jury that the community must be protected from the defendant (*see People v Galloway*, 54 NY2d 396, 401 [1981]). The People also concede that the prosecutor's suggestion that defendant sold drugs was irrelevant and not inferable from the evidence. However, the People insist that reversal is not warranted, and we agree.

[1] To prevail on his ineffective assistance of counsel claim on the basis of this single failure to object, defendant must show both that the objection omitted by trial counsel is a winning argument, here one that would have required a mistrial (*see People v Turner*, 5 NY3d 476, 481 [2005]), and that the objection was one that no reasonable defense lawyer, in the context

of the trial, could have thought to be “not worth raising” (*id.*). In this case defendant failed to meet his burden of demonstrating a lack of strategic or other legitimate reasons for his defense lawyer’s failure to object (*People v Rivera*, 71 NY2d 705, 709 [1988]). It is entirely plausible that counsel chose not to object because the prosecutor’s remarks impugned the People’s witnesses as well as defendant and therefore were consistent with his own theory that the People’s witnesses were simply not credible. It was their veracity, not defendant’s, that was at issue.

[2] Defendant also challenges the lineup in which he was identified by two witnesses as unduly suggestive. However, the fact that the witnesses knew that the suspect whom they had tentatively identified from a photographic array would be in a lineup did not, under the circumstances of this case, “present a serious risk of influencing the [witnesses’] identification of defendant from the lineup” (*People v Rodriguez*, 64 NY2d 738, 741 [1984]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[952 NE2d 1006, 929 NYS2d 14]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v THOMAS SIRICO, Appellant.

Argued May 4, 2011; decided June 7, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered October 27, 2009. The Appellate Division affirmed a judgment of the Suffolk County Court (Barbara Kahn, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree.

People v Sirico, 66 AD3d 1047, affirmed.

HEADNOTE

Crimes — Instructions — Intoxication

In a prosecution for intentional murder arising from events during which defendant, an experienced archery hunter, shot an arrow from his compound bow towards his neighbor’s yard, fatally striking the victim, defendant was

not entitled to an intoxication charge since there was insufficient evidence to support an inference that defendant was so intoxicated as to be unable to form the requisite criminal intent (*see* Penal Law § 15.25). Indeed, the uncontradicted record evidence, including defendant's own account, supported the conclusion that his overall behavior on the day of the incident was purposeful.

APPEARANCES OF COUNSEL

Legal Aid Society, Appeals Bureau, Riverhead (John M. Dowden, Robert L. Cicale and Robert C. Mitchell of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (Anne E. Oh of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Following a jury trial, defendant was convicted of murder in the second degree (Penal Law § 125.25 [1] [intentional murder]). The charges arose after defendant, an experienced archery hunter, shot an arrow from his compound bow towards his neighbor's yard, fatally striking the victim. On appeal, defendant principally contends that he was entitled to an intoxication charge (*see* Penal Law § 15.25). That section provides, in its entirety:

“Intoxication is not, as such, a defense to a criminal charge; but in any prosecution for an offense, evidence of intoxication of the defendant may be offered by the defendant whenever it is relevant to negative an element of the crime charged.”

An intoxication charge is warranted if, viewing the evidence in the light most favorable to the defendant, “there is sufficient evidence of intoxication in the record for a reasonable person to entertain a doubt as to the element of intent on that basis” (*People v Perry*, 61 NY2d 849, 850 [1984]; *see also People v Farnsworth*, 65 NY2d 734, 735 [1985]). A defendant may establish entitlement to such a charge “if the record contains evidence of the recent use of intoxicants of such nature or quantity to support the inference that their ingestion was sufficient to affect defendant's ability to form the necessary criminal intent” (*People v Rodriguez*, 76 NY2d 918, 920 [1990]). Although a “relatively low threshold” exists to demonstrate entitlement to an intoxication charge, bare assertions by a defendant concerning his intoxication, standing alone, are insufficient (*People v Gaines*, 83 NY2d 925, 927 [1994]).

Here, there is insufficient evidence to support an inference that defendant was so intoxicated as to be unable to form the requisite criminal intent. Indeed, the uncontradicted record evidence, including defendant's own account, supports the conclusion that his overall behavior on the day of the incident was purposeful. Accordingly, defendant was not entitled to an intoxication charge.

We have reviewed defendant's remaining contentions and find them to be without merit.

JONES, J. (dissenting). It is uncontroverted that defendant, on the day of the criminal incident, consumed two large glasses (approximately 12 to 15 ounces each) of Southern Comfort whiskey and ingested a Xanax pill. Shortly thereafter, he threatened friends and neighbors with a bow and arrow, fired an arrow into the side of a truck, and then fatally shot the victim—actions that call into question defendant's state of mind. Thus, given this record evidence and the “relatively low threshold” a defendant is required to meet for entitlement to a jury charge of intoxication, I respectfully dissent and would reverse the Appellate Division.

People v Perry (61 NY2d 849, 850 [1984]) established that “[a] charge on intoxication should be given if there is sufficient evidence of intoxication in the record for a reasonable person to entertain a doubt as to the element of intent on that basis.” Certainly, given the low evidentiary bar set for the entitlement to a charge of intoxication, that rule was subject to abuse and we have rejected conclusory and “bare assertion[s] by a defendant that he was intoxicated” (*People v Gaines*, 83 NY2d 925, 927 [1994]). Accordingly, there must be objective evidence in the record,

“such as the number of drinks, the period of time during which they were consumed, the lapse of time between consumption and the event at issue, whether [the defendant] consumed alcohol on an empty stomach, whether his [or her] drinks were high in alcoholic content, and the specific impact of the alcohol upon his [or her] behavior or mental state” (*id.*).

The record evidence in this case satisfies the rule of *Perry* and *Gaines* and may serve to negate the mens rea element of intent for murder in the second degree (see Penal Law §§ 15.25, 125.25 [1]). Thus, it was error for the trial court to deny defendant's request for a charge of intoxication.

The People contend that defendant's testimony establishes that an issue with the mechanism of his prosthetic leg, and not intoxication, precipitated the fatal firing of the bow and arrow. However, it should be emphasized that in determining whether a theory of defense should be charged, a defendant is entitled to the "most favorable view of the record" (*People v Steele*, 26 NY2d 526, 529 [1970]), and a trial court is obligated to charge a theory of defense where it is supported by a reasonable view of the trial evidence (*see People v Butts*, 72 NY2d 746, 750 [1988]). Here, contrary testimony should not preclude the charge of intoxication where there is a reasonable view of the record evidence that would support such an instruction (*see Perry*, 61 NY2d at 850-851 [Court held that intoxication should be charged "although defendant testified that he was aware of his actions"]; *People v Smith*, 43 AD3d 475, 475-476 [2d Dept 2007] [court held that defendant was entitled to a charge of intoxication based on evidence that he was observed drinking vodka even though two detectives testified that he was "walking fine" and they did not detect any signs of inebriation]).

A trial court simply cannot forgo its obligation to properly charge a theory of defense when there is record support. Ultimately, whether a jury credits or discredits the testimony of defendant in rendering its factual determinations is a matter beyond our purview. But before reaching its final decision, the trier of fact should be presented with all relevant instructions, as supported by the record, for its due consideration.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur; Judge JONES dissents and votes to reverse in an opinion.

Order affirmed in a memorandum.

In the Matter of DONNA BLACK, Appellant, v JOHN PAUL WATSON,
Respondent.

Submitted April 11, 2011; decided June 7, 2011

Reported below, 81 AD3d 1316.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed so much of Family Court's order as adjudged that respondent did not willfully violate a prior order of the court, dismissed upon the ground that such portion of the order does not finally determine the

proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

GLENCORD BUILDING CORP. et al., Respondents, v ELENA STRUJAN, Appellant, et al., Defendant.

Submitted April 25, 2011; decided June 7, 2011

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* CPLR 5602). Motion for poor person relief dismissed as academic.

ROBERT SNYDER, Appellant, et al., Plaintiff, v ALLSTATE INSURANCE COMPANY, Respondent.

Submitted April 18, 2011; decided June 7, 2011

Reported below, 70 AD3d 670.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Supreme Court order dismissing the complaint, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

[952 NE2d 1010, 929 NYS2d 18]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v ALLEN ALBERGOTTI, Appellant.

Argued April 26, 2011; decided June 9, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered April 1, 2010. The Appellate Division modified, on the law, a judgment of the Supreme Court, New York County (Carol Berkman, J.), which had convicted defendant, upon his plea of guilty, of forgery in the second degree, sentenced defendant, as a second felony offender, to a term of 2½ to 5 years imprisonment, and imposed a mandatory surcharge and crime victim assistance fee of \$300

and \$25, respectively. The modification consisted of reducing the mandatory surcharge and crime victim assistance fee to \$250 and \$20, respectively. The Appellate Division affirmed the judgment as modified.

People v Albergotti, 72 AD3d 401, affirmed.

HEADNOTES

Crimes — Appeal — Preservation of Issue for Review

1. In a prosecution for forgery in which defendant was informed that a promised sentence was no longer available because of his failure to comply with the terms of his guilty plea, defendant preserved his argument concerning adequacy of the trial court's inquiry as to whether he had violated the conditions of his plea. Although defendant did not specifically complain to the court in terms of the inadequacy of the inquiry, his arguments regarding the alleged sentencing error were readily discernible from the hearing transcript.

Crimes — Plea Bargaining — Breach of Condition — Sufficiency of Inquiry

2. In a prosecution for forgery in which defendant was informed that a promised sentence was no longer available because of his failure to comply with the terms of his guilty plea, the sentencing court conducted a sufficient inquiry to give defendant an opportunity to show that the alleged violation of the plea terms was without foundation. The court was not required to conduct an evidentiary hearing to determine the veracity of defendant's excuses. Both defendant and his counsel were given ample opportunity to refute the court's assertions that defendant had violated the plea terms. That the court chose not to credit defendant's account of events was not a ground for reversal.

APPEARANCES OF COUNSEL

Center for Appellate Litigation, New York City (*Robert S. Dean* of counsel), for appellant.

Cyrus R. Vance, Jr., *District Attorney*, New York City (*Matthew C. Williams* and *Frank Glaser* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The Appellate Division order should be affirmed.

Defendant pleaded guilty to second-degree forgery in satisfaction of charges related to his use of a forged traveler's check in a retail store. In exchange, defendant was promised a second felony offender sentence of 2 to 4 years—the minimum for a class D felony, provided he return to court, “stay out of trouble,” and cooperate with the Department of Probation. If he did not fulfill the conditions, he was warned he could be subject to a prison term of up to 25 years to life as a discretionary persistent felony offender. The court adjourned the case several weeks for sentencing. Probation sent two letters to defendant instructing

him to report for an interview. Defendant neither contacted Probation nor appeared for an interview.

On the day of his scheduled sentencing hearing, defendant came to court in the morning, as required, and conferred with counsel. However, he left without notifying his attorney or the court and failed to answer the calendar call at both the morning and afternoon sessions. The court issued a bench warrant.

At a subsequent hearing, the judge informed defendant that the promised sentence was no longer available because of his failure to comply with the plea terms. Defendant was thereafter sentenced to a term of 2½ to 5 years in prison. On appeal to the Appellate Division, defendant argued, among other things, that the “court’s imposition of an enhanced sentence violated due process” because the court “failed to conduct an adequate ‘inquiry’ to ensure that it was correct in its belief that [he] had violated the conditions of his plea.”

The Appellate Division found that this argument was not preserved (*People v Albergotti*, 72 AD3d 401, 401 [1st Dept 2010]) and that, in any event, the court conducted a sufficient inquiry under *People v Outley* (80 NY2d 702, 713 [1993] [holding that when an issue is raised concerning the validity of a postplea charge, “the court must conduct an inquiry at which the defendant has an opportunity to show that the (alleged violation of the plea terms) is without foundation”]) (*id.*).

[1, 2] Although defendant did not specifically complain to the court in terms of the inadequacy of the inquiry pursuant to *Outley*, his arguments regarding the alleged sentencing error are readily discernible from the hearing transcript. Accordingly, we find preservation, reach the merits and uphold the Appellate Division’s alternative holding that the sentencing court conducted a sufficient inquiry to satisfy our standard in *Outley*. The court was not required to conduct an evidentiary hearing to determine the veracity of defendant’s excuses (*see Outley*, 80 NY2d at 712-713). Both defendant and his counsel were given ample opportunity to refute the court’s assertions that defendant had violated the plea terms. That the court chose not to credit defendant’s account of events is not a ground for reversal.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[952 NE2d 1060, 929 NYS2d 67]

BEN UMEZE, M.D., Respondent, v FIDELIS CARE NEW YORK et al.,
Appellants.

Decided June 9, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 21, 2010. The Appellate Division affirmed an order of the Supreme Court, Bronx County (Kenneth L. Thompson, Jr., J.), which had granted a motion by defendants to dismiss the complaint for failure to prosecute to the extent of directing plaintiff to resume prosecution of the action within 10 days of service of the order with notice of entry. The following question was certified by the Appellate Division: “Was the order of Supreme Court, as affirmed by this Court, properly made?”

Umeze v Fidelis Care N.Y., 76 AD3d 873, reversed.

HEADNOTE**Dismissal and Nonsuit — Want of Prosecution**

Supreme Court abused its discretion by declining to grant defendants’ motion to dismiss an action for want of prosecution without condition where the plaintiff failed to establish both a justifiable excuse for his failure to timely file a note of issue and a meritorious cause of action (*see* CPLR 3216 [e]).

APPEARANCES OF COUNSEL

Sedgwick, Detert, Moran & Arnold LLP, New York City (*Michael H. Bernstein* and *John T. Seybert* of counsel), for appellants.

Law Offices of Joseph N. Obiora, Jamaica (*Joseph N. Obiora* of counsel), for respondent.

OPINION OF THE COURT**MEMORANDUM.**

The order of the Appellate Division should be reversed, with costs, defendants’ motion to dismiss the complaint pursuant to CPLR 3216 granted unconditionally, and the certified question answered in the negative.

Supreme Court abused its discretion by declining to grant defendants’ motion to dismiss without condition. Plaintiff failed to establish a (1) justifiable excuse for his failure to timely file a note of issue and (2) meritorious cause of action (*see* CPLR 3216 [e]; *see also* *Baczowski v Collins Constr. Co.*, 89 NY2d 499 [1997]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, etc.

[952 NE2d 1008, 929 NYS2d 16]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v STEVE JOHNSON, Appellant.

Argued May 2, 2011; decided June 9, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered June 1, 2010. The Appellate Division affirmed a judgment of the Supreme Court, New York County (Maxwell T. Wiley, J.), which had convicted defendant, upon a jury verdict, of attempted murder in the second degree as a hate crime, attempted murder in the second degree (two counts), assault in the first degree as a hate crime, assault in the first degree (three counts), kidnapping in the second degree as a hate crime (15 counts), kidnapping in the second degree (15 counts), assault in the second degree as a hate crime (five counts), assault in the second degree (five counts), criminal possession of a weapon in the second degree (three counts), and criminal possession of a weapon in the third degree (three counts).

People v Johnson, 74 AD3d 427, reversed.

HEADNOTE

Crimes — Jurors — Selection of Jury

Defendant was entitled to a new trial on murder and other charges where, during voir dire, a prospective juror expressed uncertainty concerning her ability to fairly consider the insanity defense, a major issue in the case, and the trial court did not undertake follow-up questioning and denied defendant's "for cause" challenge. Defendant used a peremptory challenge to excuse the juror, subsequently exhausting all such challenges. When potential jurors themselves say they question or doubt they can be fair in a case, trial judges should either elicit some unequivocal assurance of their ability to be impartial when that is appropriate, or excuse the juror when that is appropriate.

APPEARANCES OF COUNSEL

Legal Aid Society, Criminal Appeals Bureau, New York City (Allen L. Fallek and Steven Banks of counsel), for appellant.

Cyrus R. Vance, Jr., District Attorney, New York City (Susan Axelrod and Patrick J. Hynes of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be reversed and a new trial ordered.

In this complex case involving multiple attempted murder, kidnaping and other charges, defendant did not dispute his involvement in the criminal transaction but pursued an insanity defense. During voir dire, a prospective juror who had written a college research paper on the insanity defense stated that she would be able to set aside her personal views on that topic and apply the law as instructed by the court. However, in response to subsequent questioning by counsel, she indicated that she had a “strong bias” in connection with the defense, “might be biased in the way that [she] interpret[ed] the evidence” in that regard, and was not certain that she would be able to give both sides a fair trial. Despite these troubling statements, the trial court did not undertake further inquiry of the juror and denied defendant’s “for cause” challenge. Defendant therefore used a peremptory challenge to excuse the juror, subsequently exhausting all peremptory challenges.

As we have stressed in the past,

“[w]hen potential jurors themselves say they question or doubt they can be fair in the case, Trial Judges should either elicit some unequivocal assurance of their ability to be impartial when that is appropriate, or excuse the juror when that is appropriate. The worst the court will have done in most cases is to have replaced one impartial juror with another impartial juror” (*see People v Johnson*, 94 NY2d 600, 616 [2000] [internal quotation marks and citation omitted]).

Here, given the absence of follow-up questioning by the court after the juror expressed uncertainty concerning her ability to fairly consider a major issue in this case, the conviction must be reversed and the matter remitted for a new trial.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

Order reversed, etc.

[952 NE2d 1061, 929 NYS2d 68]

In the Matter of the Estate of ROCKY H. AOKI, Also Known as
HIROAKI AOKI, Deceased.

KEIKO ONO AOKI, Respondent, v KANA AOKI NOOTENBOOM et al.,
Appellants, et al., Respondent.

Decided June 9, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered November 23, 2010. The Appellate Division affirmed so much of an order of the Surrogate's Court, New York County (Kristin Booth Glen, S.), as had denied objectants' motion to extend the end date for disclosure to October 15, 2010, and to delete limitations on the number and identity of the persons to be deposed. The following question was certified by the Appellate Division: "Was the order of [Surrogate's] Court, as affirmed by the [order of] this Court, properly made?"

Matter of Aoki, 78 AD3d 569, affirmed.

HEADNOTE

Disclosure — Supervision of Disclosure

Surrogate's Court did not abuse its discretion by setting a deadline for the completion of discovery and limiting the identity and number of individuals to be deposed.

APPEARANCES OF COUNSEL

Holland & Knight, LLP, New York City (*Joseph P. Sullivan* of counsel), for appellants.

Rosenberg Feldman Smith, LLP, New York City (*Richard B. Feldman*, *Michael H. Smith* and *McKenzie A. Livingston* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, and the certified question answered in the affirmative. We agree with the Appellate Division that Surrogate's Court did not abuse its discretion by setting a December

2009 deadline for the completion of discovery and limiting the identity and number of individuals to be deposed.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of the Claim of MARIA M. ALMONTE, Appellant.
COMMISSIONER OF LABOR, Respondent.

Submitted April 25, 2011; decided June 9, 2011

Reported below, 65 AD3d 729.

Motion for reconsideration of this Court's March 31, 2011 dismissal order denied [*see* 16 NY3d 824 (2011)].

In the Matter of ANONYMOUS, an Applicant for Admission to the Bar, Appellant.

Submitted April 25, 2011; decided June 9, 2011

Motion for reconsideration of this Court's February 15, 2011 dismissal order denied [*see* 16 NY3d 759 (2011)].

BAYGOLD ASSOCIATES, INC., Appellant, v CONGREGATION YETEV LEV OF MONSEY, INC., Respondent.

MONSEY PARK HOME FOR ADULTS, Appellant, v ISRAEL ORZEL, Respondent, et al., Defendants.

Submitted April 4, 2011; decided June 9, 2011

Reported below, 81 AD3d 763.

Motion, insofar as made by Monsey Park Home for Adults for leave to appeal, dismissed upon the ground that Monsey Park Home for Adults is not a party aggrieved (*see* CPLR 5511); motion, insofar as made by Baygold Associates, Inc. for leave to appeal, granted.

Judge JONES taking no part.

JOSE CARIDE et al., Respondents, v ALEJANDRO ALONSO et al., Appellants. (And a Third-Party Action.)

Submitted May 9, 2011; decided June 9, 2011

Reported below, 78 AD3d 466.

Motion for reargument of motion for leave to appeal denied [see 16 NY3d 806 (2011)].

In the Matter of the Claim of MARIE L. GENTILE, as Widow of JAY ALAN GENTILE, Deceased, Appellant, v SOVEREIGN MOTOR CARS et al., Respondents. WORKERS' COMPENSATION BOARD, Respondent.

Submitted May 16, 2011; decided June 9, 2011

Reported below, 77 AD3d 1027.

Motion for reargument of motion for leave to appeal denied [see 16 NY3d 824 (2011)].

JOSE MIGUEL MORAN, Respondent, v 200 VARICK STREET ASSOCIATES, LLC, Respondent, and WOLFF OLINS, LLC, et al., Appellants.

Submitted May 9, 2011; decided June 9, 2011

Reported below, 80 AD3d 581.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

OTU A. OBOT, Appellant, v MEDAILLE COLLEGE, Respondent.

Decided June 9, 2011

Reported below, 82 AD3d 1629.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

OTU A. OBOT, Appellant, v NATIONAL FUEL GAS DISTRIBUTION CORPORATION, Respondent.

Decided June 9, 2011

Reported below, 81 AD3d 1254.

Appeal, insofar as taken from the Appellate Division order that affirmed the February 2010 Supreme Court order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the action within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division order that affirmed the March 2010 Supreme Court order, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

ALEXANDRE VAN DAMME, Respondent, v NAHUM GELBER, Appellant, and ARIJ GASIUNASEN FINE ART OF PALM BEACH, INC., Doing Business as GASIUNASEN GALLERY, Respondent. (And a Third-Party Action.)

Submitted May 9, 2011; decided June 9, 2011

Reported below, 79 AD3d 534.

Motion for reargument of motion for leave to appeal denied with \$100 costs and necessary reproduction disbursements [*see* 16 NY3d 708 (2011)].

[952 NE2d 1026, 929 NYS2d 34]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JEFFREY D. GIBSON, Appellant.

Argued May 3, 2011; decided June 14, 2011

SUMMARY

APPEAL, by permission of a Justice of the Appellate Division of the Supreme Court in the Fourth Judicial Department, from an order of that Court, entered June 11, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Erie County (Sheila A. DiTullio, J., at suppression hearing; John L. Michalski, J., at trial and sentence), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

People v Gibson, 74 AD3d 1700, affirmed.

HEADNOTE

Crimes — Right to Counsel — Surreptitious Collection of DNA Evidence

In a prosecution for robbery, the collection of defendant's DNA while he was in custody and represented by counsel in an unrelated matter, did not

contravene his indelible right to counsel, where defendant smoked a cigarette while conversing with a detective he had known, and the detective took possession of the discarded butt and had it analyzed. Although the attachment of the right to counsel precluded the police from questioning defendant about any criminal matter, the detective did not ask defendant about a criminal case, and his actions—displaying a pack of cigarettes and providing one to defendant at his request—were not reasonably likely to elicit an incriminating response. The DNA that defendant voluntarily deposited on the cigarette butt was not a “response” or “statement” subject to exclusion under New York’s right to counsel rules because the transfer of bodily fluids was not a communicative act that disclosed “the contents of defendant’s mind.” Nor did the detective coerce defendant into providing the DNA evidence or subject him to the functional equivalent of an uncounseled decision to consent to a search. Rather, defendant initiated the interaction by summoning the detective, requesting a cigarette and abandoning the cigarette butt. Accordingly, the detective simply capitalized on the situation that manifested itself through defendant’s own actions.

APPEARANCES OF COUNSEL

Legal Aid Bureau of Buffalo, Inc., Buffalo (*Vincent F. Gugino*, *Barbara J. Davies* and *David C. Schopp* of counsel), for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Michael J. Hillery* and *Donna A. Milling* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Defendant Jeffrey Gibson was suspected of robbing an Erie County gas station at gunpoint in July 2005. He was subsequently arrested on a bench warrant stemming from an unrelated matter in which his indelible right to counsel had attached by virtue of an attorney’s entry into the case.* While incarcerated, defendant asked to speak to a detective he had known for several years. The detective brought defendant from his cell to an office for the conversation.

Hoping to obtain a DNA sample from defendant, the detective brought out a pack of cigarettes and defendant asked to smoke one. The detective obliged and the two men smoked while defendant discussed problems he was having with a landlord. They did not discuss the gas station robbery or any other criminal matter. Eventually, defendant extinguished the cigarette in an ashtray and he was returned to his cell. The detective took possession of the ashtray and the cigarette butt left by defendant.

* The People do not contend that defendant’s right to counsel had not been triggered in the matter for which he was in custody when the facts relevant to this appeal occurred (*cf. People v Lopez*, 16 NY3d 375, 385 n 6 [2011]).

The DNA from defendant's saliva was extracted from the cigarette remains and was found to conclusively match the DNA found on an article of clothing that was believed to have been worn by the person who robbed the gas station. Defendant was indicted for the robbery and, following a jury trial, he was convicted of robbery in the first degree. The Appellate Division affirmed (74 AD3d 1700 [4th Dept 2010]) and a dissenting Justice granted leave to appeal (15 NY3d 780 [2010]).

Under the circumstances of this case, the collection of defendant's DNA while he was in custody did not contravene his inalienable right to counsel. The People do not dispute that the attachment of that right precluded the police from questioning defendant about any criminal matter (*see People v Burdo*, 91 NY2d 146, 150 [1997]). But the detective here did not ask defendant about a criminal case, and his actions—displaying a pack of cigarettes and providing one to defendant at his request—were not reasonably likely to elicit an incriminating response (*see e.g. People v Ferro*, 63 NY2d 316, 321 [1984], *cert denied* 472 US 1007 [1985]). The DNA that defendant voluntarily deposited on the cigarette butt was not a “response” or “statement” subject to exclusion under New York's right to counsel rules because the transfer of bodily fluids was not a communicative act that disclosed “the contents of defendant's mind” (*People v Havrish*, 8 NY3d 389, 395 [2007], *cert denied* 552 US 886 [2007]). Nor did the detective coerce defendant into providing the DNA evidence or subject him to the functional equivalent of an uncounseled decision to consent to a search (*see People v Esposito*, 68 NY2d 961, 962 [1986]; *People v Johnson*, 48 NY2d 565, 568-569 [1979]). Rather, defendant initiated the interaction by summoning the detective, requesting a cigarette and abandoning the cigarette butt. Based on these facts, County Court aptly noted that the detective simply “capitalized on the situation that manifested itself through . . . defendant's own actions.”

Defendant's remaining contentions, to the extent they are reviewable, lack merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[952 NE2d 1022, 929 NYS2d 30]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v Emar
ABRAMS, Appellant.

Argued May 2, 2011; decided June 14, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Third Judicial Department, entered May 6, 2010. The Appellate Division affirmed a judgment of the Supreme Court, Ulster County (Roger D. McDonough, J.), which had convicted defendant, upon a jury verdict, of criminal possession of a weapon in the second degree, criminal possession of a weapon in the third degree (two counts), reckless endangerment in the first degree, and endangering the welfare of a child (two counts).

People v Abrams, 73 AD3d 1225, affirmed.

HEADNOTE

District and Prosecuting Attorneys — Special Prosecutor — Confer- ring Immunity on Witness

In a criminal prosecution in which a special prosecutor was appointed and the prosecutor, before requesting immunity from prosecution for a witness, conferred with the district attorney, who had previously represented defendant, concerning the prosecutor's authority to immunize the witness and to obtain "permission" to do so, defendant was not entitled to vacatur of his conviction on the ground of the district attorney's alleged conflict of interest. In seeking immunity for the witness, the special prosecutor acted within his discretionary authority (*see* CPL 50.30; County Law § 701 [4]). He conferred with the district attorney merely to confirm that he was empowered to grant immunity to a witness, and that the district attorney would honor the grant. The district attorney's "permission" did not vest the special prosecutor with any more authority than he already enjoyed, and the record did not suggest that the district attorney shared confidential information with the special prosecutor, or that he prompted or influenced the special prosecutor's decision to immunize the witness from prosecution. Accordingly, defendant was not entitled to vacatur of his conviction, since he failed to establish actual prejudice or a substantial risk of an abused confidence.

APPEARANCES OF COUNSEL

Emar Abrams, pro se, and *Mitchell S. Kessler*, Cohoes, for
Emar Abrams, appellant.

Anna E. Remet, *Special Prosecutor*, Kingston, for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

On October 12, 2006, Tiffany Abrams and her two young sons were in their Ulster County apartment along with defendant, Emar Abrams, the boys' father and Tiffany's estranged husband. Defendant did not live at the apartment, but was supposed to watch the children that day while Tiffany was at work. Tiffany and defendant were "arguing back and forth" when she went into her bedroom to try to fix the "frozen" computer for her older son before she left for work. She sat down in front of the computer monitor as defendant continued to badger her. A shot was fired from behind Tiffany, and a bullet whizzed past her ear, shattering the monitor's screen and lodging in the bedroom wall. Defendant fled, and Tiffany, with her two children in tow, ran to her sister's apartment. Tiffany appeared upset and disheveled to her sister; tiny glass shards were visible in her arm. She told her sister that defendant had shot at her. Tiffany's sister called the police.

Meanwhile, defendant took a taxi to the apartment complex where his girlfriend, Tanisha Torres, resided. After he arrived at the apartment, defendant disappeared into Tanisha's bedroom and reappeared with a lockbox that she kept there. Defendant gave the lockbox to Tanisha and asked her to "remove" it. Tanisha decided that the safest place for the lockbox would be her parents' house, so she put the lockbox in a bag and called her mother to come pick her up and take her there. Before hiding the lockbox in the toolshed in her parents' backyard, Torres looked inside the box and saw a handgun. Tanisha's mother drove Tanisha back to her apartment, where defendant had remained.

Tanisha's mother called her husband, Tanisha's father, who left work to go home and look in the toolshed. He saw that things were "out of place" in the shed—to which apparently only he and Tanisha had a key—discovered the lockbox, pried it open with a crowbar, saw the gun and closed the lockbox back up. Not wanting a gun in the shed, Tanisha's father tossed the lockbox into the woods, and then told the police where to find the gun. Ballistics testing subsequently determined that the bullet lodged in Tiffany's bedroom wall was fired from the gun stashed away in the lockbox.

Police set up a barricade at Tanisha's apartment complex, and defendant was eventually persuaded to surrender. He was arrested and charged with weapon possession crimes, reckless endangerment, menacing and endangering the welfare of a child. Before trial, the newly-elected district attorney, who had

previously represented defendant “either on the charges pending before the court or on other charges,” asked County Court to appoint a special prosecutor. County Court granted the motion.

The special prosecutor learned that Tiffany was unwilling to testify and intended to invoke her constitutional privilege against self-incrimination. Just before opening statements, he disclosed the terms of an agreement pursuant to which Tiffany had been granted immunity from prosecution for perjury in the event her trial testimony conflicted with her grand jury testimony. The special prosecutor said that he had granted Tiffany immunity after consulting with the district attorney to see if, as special prosecutor, he was authorized to immunize a witness from prosecution, and obtaining the district attorney’s “permission.” Defendant objected on the ground of the district attorney’s conflict of interest. The trial judge approved the grant of immunity.

The jury convicted defendant of all the counts of the original indictment, except menacing, which was dismissed by the special prosecutor at trial. The trial judge sentenced defendant, a prior felony offender, to determinate prison terms that aggregated to 13½ years, to be followed by five years of postrelease supervision. Defendant appealed, and the Appellate Division affirmed (73 AD3d 1225 [3d Dept 2010]). A Judge of this Court granted defendant leave to appeal (15 NY3d 746 [2010]), and we now also affirm.

A prosecutor possesses discretion to decide when to immunize a witness from prosecution, and County Court is a competent authority to confer immunity when expressly requested by the district attorney to do so (CPL 50.30). Further, section 701 (4) of the County Law declares that special district attorneys (i.e., special prosecutors) “shall possess the powers and discharge the duties of the district attorney during the period for which he or she shall be appointed.”

In seeking immunity for Tiffany, the special prosecutor therefore acted within his discretionary authority. He conferred with the district attorney merely to confirm that he was empowered to grant immunity to a witness, and that the district attorney would honor the grant. In short, the district attorney’s “permission” did not vest the special prosecutor with any more authority than he already enjoyed. As the Appellate Division observed, the record does not suggest that the district attorney shared confidential information with the special prosecutor, or

that he prompted or influenced the special prosecutor's decision to immunize Tiffany from prosecution. "To warrant vacatur of the conviction, [a] defendant must establish actual prejudice or a substantial risk of an abused confidence" (*People v English*, 88 NY2d 30, 34 [1996]), and defendant has not shown either circumstance to be the case here.

We have examined defendant's other claims and consider them to be meritless.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

[952 NE2d 1024, 929 NYS2d 32]

CONGREGATION RABBINICAL COLLEGE OF TARTIKOV, INC., Respondent, v TOWN OF RAMAPO et al., Appellants.

Argued May 2, 2011; decided June 14, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered April 20, 2010. The Appellate Division (1) reversed, on the facts, so much of a judgment of the Supreme Court, Rockland County (John R. LaCava, J.; op 23 Misc 3d 1117[A], 2009 NY Slip Op 50797[U]), as, after a non-jury trial on submitted facts, had declared that defendants had properly revoked a tax exemption on plaintiff's real property, and (2) declared that plaintiffs real property was exempt from real property taxation pursuant to Real Property Tax Law § 420-a (1) for the tax years 2006, 2007, and 2008.

Congregation Rabbinical Coll. of Tartikov, Inc. v Town of Ramapo, 72 AD3d 869, affirmed.

HEADNOTE

Taxation — Exemptions — Use of Real Property by Religious Corporation

In a challenge to defendant town's revocation of a tax exemption on real property owned by plaintiff, a religious corporation (*see* RPTL 420-a [1] [a]), the town failed to establish that the primary use of the property was not in furtherance of plaintiff's religious purposes. The town bore the burden of proving that the real property was subject to taxation when it sought to revoke a previously granted tax exemption. Here, the sole use of the subject property, by the previous owner and by plaintiff, had been the operation of a

summer camp with a religious curriculum. A contractor hired by plaintiff was not the entity actually “using” the property and exclusively operating the camp, where the contract indicated that the contractor was managing the camp on behalf of plaintiff, and the town stipulated to the fact that plaintiff retained general supervision and control over the camp’s operation, including the right to approve the hiring of camp personnel, the purveyors of kosher food for camp lunches, and the religious curriculum. Moreover, an economic profit made by a religious corporation does not by itself extinguish a tax exemption.

APPEARANCES OF COUNSEL

Michael L. Klein, Town Attorney, Suffern (Janice Gittelman of counsel), for appellants.

Scheinert & Kobb, LLC, Nanuet (Joel L. Scheinert of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

New York’s Real Property Tax Law exempts from taxation real property owned by a religious corporation if it is “used exclusively for carrying out thereupon” a religious purpose (RPTL 420-a [1] [a]). Plaintiff’s property in the Town of Ramapo, Rockland County, had been deemed tax exempt for several years before the Town revoked the exemption in 2007. Plaintiff protested. Supreme Court ruled in favor of the Town (23 Misc 3d 1117[A], 2009 NY Slip Op 50797[U] [2009]), but the Appellate Division reversed (72 AD3d 869 [2010]), correctly noting that when a municipality seeks to revoke a previously granted tax exemption, it bears the burden of proving that the real property is now subject to taxation (*Matter of New York Botanical Garden v Assessors of Town of Washington*, 55 NY2d 328, 334 [1982]). Here, the sole use of the subject property, by the previous owner and by plaintiff, has been the operation of a summer camp with a religious curriculum. The Town failed to establish that the primary use of the property was not in furtherance of plaintiff’s religious purposes (*see Matter of Yeshivath Shearith Hapletah v Assessor of Town of Fallsburg*, 79 NY2d 244, 250 [1992]).

Although the Town argues that a contractor hired by plaintiff was actually the entity “using” the property and exclusively operating the camp, we hold that the Appellate Division correctly concluded otherwise. The contract indicated that the

contractor was managing the camp on behalf of the plaintiff and the Town stipulated to the fact that plaintiff retained general supervision and control over the camp's operation, including the right to approve the hiring of camp personnel, the purveyors of kosher food for camp lunches, and the religious curriculum. Moreover, an economic profit made by a religious corporation "does not by itself extinguish a tax exemption" (*Matter of Adult Home at Erie Sta., Inc. v Assessor & Bd. of Assessment Review of City of Middletown*, 10 NY3d 205, 216 [2008]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH and PIGOTT concur; Judge JONES taking no part.

Order affirmed, with costs, in a memorandum.

[952 NE2d 1064, 929 NYS2d 71]

LOUISE DiGIULIO, Individually and as Executrix of ALBERT DiGIULIO, Deceased, Appellant, v GRAN, INC., Doing Business as NEW YORK HEALTH & RACQUET CLUB, et al., Respondents. (And a Third-Party Action.)

Decided June 14, 2011

SUMMARY

APPEAL, by permission of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the First Judicial Department, entered June 3, 2010. The Appellate Division affirmed an order of the Supreme Court, New York County (Marylin G. Diamond, J.; op 26 Misc 3d 418), which had denied a motion by plaintiff for partial summary judgment on the issue of liability, and granted a cross motion by defendants for summary judgment dismissing the complaint.

At about 6:22 A.M. on the morning of February 21, 2006, plaintiff's decedent suffered a heart attack while running on a treadmill at a health club that defendants owned and operated. The decedent, age 52, was a longtime club member who frequently exercised on its treadmills. After decedent fell off the treadmill and collapsed on the floor, another patron ran down a flight of stairs to the lobby and alerted the club's assistant manager who immediately called 911 and ran upstairs. Another club employee came to decedent's aid at the same time and immediately began performing cardiopulmonary resuscitation (CPR) on him. While the employee was performing CPR, the

assistant manager, who was trained to operate an automated external defibrillator (AED), went to an AED stored in a glass cabinet hung on a nearby wall. The cabinet had a visible key lock mechanism, but was unlocked. Instead of trying to open the cabinet, the assistant manager, who admittedly was panicked, assumed it was locked and, not knowing where the key was, ran back downstairs to the club offices and searched for it. He abandoned his search when emergency medical services (EMS) personnel arrived at the scene. An EMS pre-hospital care report of the incident stated that EMS personnel arrived at 6:29 A.M. and found decedent “in full cardiac arrest.” While EMS personnel were administering CPR, more personnel arrived, placed decedent on a monitor, and delivered shocks with their own AED starting at 6:31 A.M. Decedent’s heartbeat was restored and he was taken to a hospital. Decedent, who had suffered anoxic brain damage while stricken, remained hospitalized from February 21 until his death on June 14, 2006.

Plaintiff alleged that defendants were liable under theories of common-law negligence and negligence per se for violation of General Business Law § 627-a, which required the club to keep an AED on premises along with a person trained to use it.

Digiulio v Gran, Inc., 74 AD3d 450, affirmed.

HEADNOTE

Negligence — Duty — Duty of Health Club to Use Automated External Defibrillator during Emergency

Plaintiff’s complaint, alleging common-law negligence and violation of General Business Law § 627-a against defendant health club for events following decedent’s heart attack on defendant’s premises, was properly dismissed. Assuming *arguendo* that General Business Law § 627-a implicitly created a duty for defendants to use the automated external defibrillator (AED) the section required them to provide at their facility, plaintiff cannot recover because she failed to raise a triable issue of fact demonstrating that defendants’ or their employees’ failure to access the AED was grossly negligent (*see* General Business Law § 627-a [3]; Public Health Law § 3000-a). Defendants also did not breach any common-law duty to render aid to the decedent.

APPEARANCES OF COUNSEL

Decolator, Cohen & DiPrisco, Garden City (*David S. Gould* of counsel), for appellant.

Morgan Melhuish Abrutyn, New York City (*Douglas S. Langholz* of counsel), for respondents.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs.

Assuming arguendo that General Business Law § 627-a implicitly created a duty for defendants to use the automated external defibrillator (AED) the section required them to provide at their facility, plaintiff cannot recover because she failed to raise a triable issue of fact demonstrating that defendants' or their employees' failure to access the AED was grossly negligent (*see* General Business Law § 627-a [3]; Public Health Law § 3000-a). Defendants also did not breach any common-law duty to render aid to the decedent.

Plaintiff's remaining contention lacks merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, with costs, in a memorandum.

[952 NE2d 1064, 929 NYS2d 71]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v JOSEPH R., Appellant.

Decided June 14, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered June 22, 2010. The Appellate Division (1) reversed, on the law, a judgment of the Suffolk County Court (Barbara Kahn, J.), which had adjudicated defendant a youthful offender upon his plea of guilty to use of a child in a sexual performance, (2) vacated the youthful offender adjudication and sentence imposed thereon, and (3) remitted the matter for further proceedings.

People v Joseph R., 74 AD3d 1244, reversed.

HEADNOTE

Crimes — Appeal — Matters Appealable

In a criminal prosecution, an order of the Appellate Division, which reversed a judgment adjudicating defendant a youthful offender, was reversed,

and the case remitted to the Appellate Division, with directions to dismiss the People's appeal to that court. No statute authorized the appeal by the People to the Appellate Division from the County Court judgment adjudicating defendant a youthful offender.

APPEARANCES OF COUNSEL

O'Sullivan & Zacchea, PLLC, Kew Gardens (*Daniel R. DeMarco* of counsel), for appellant.

Thomas J. Spota, District Attorney, Riverhead (*Thomas Constant* of counsel), for respondent.

OPINION OF THE COURT

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order reversed, and case remitted to the Appellate Division, Second Department, with directions to dismiss the People's appeal to that court. No statute authorized the appeal by the People to the Appellate Division from the County Court judgment adjudicating defendant a youthful offender.

Concur: Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES.

In the Matter of DANIEL T.-H. ALISON KAMHI, Respondent, et al., Respondents. WESTCHESTER COUNTY COMMISSIONER OF SOCIAL SERVICES, Nonparty Appellant.

Submitted April 18, 2011; decided June 14, 2011

Reported below, 81 AD3d 966.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

PHILLIP JOHNSON, Appellant, v NORMAN R. BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Submitted April 11, 2011; decided June 14, 2011

Motion for leave to appeal dismissed upon the ground that this motion does not properly lie to the Court of Appeals directly from the judgment of Supreme Court (*see* CPLR 5602).

ROSS LELIN, Respondent, v MANOHAR K. SHRESTHA, Appellant,
et al., Defendant.

Submitted May 16, 2011; decided June 14, 2011

Reported below, 2011 NY Slip Op 68830(U).

Motion for leave to appeal dismissed upon the ground that it does not lie (*see* NY Const, art VI, § 3 [b] [7]; CPLR 5602 [a]).

JASON McDONALD, Respondent, v UICC HOLDING, LLC, Appellant.

Submitted April 18, 2011; decided June 14, 2011

Reported below, 79 AD3d 1220.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

1091 RIVER AVENUE LLC, et al., Appellants, v PLATINUM CAPITAL PARTNERS, INC., Respondent.

Decided June 14, 2011

Reported below, 82 AD3d 404.

Appeal, insofar as taken from that portion of the Appellate Division order that affirmed so much of Supreme Court's order as dismissed the petition, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the remainder of the Appellate Division order does not finally determine the proceeding within the meaning of the Constitution.

R&R CAPITAL LLC et al., Respondents, v LINDA MERRITT, Appellant. HOGAN & HARTSON, LLP, Intervenor-Respondent.

Submitted April 11, 2011; decided June 14, 2011

Reported below, 78 AD3d 533.

Motion for leave to appeal dismissed upon the ground that

the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of ROBERT B.-H. MERCYFIRST, Appellant, et al.,
Petitioner; ROBERT H., Respondent. (And Three Other Pro-
ceedings.)

Submitted April 11, 2011; decided June 14, 2011

Reported below, 82 AD3d 1221.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceedings within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

In the Matter of the Claim of RAYMOND C. SMITH, Respondent, v
ALBANY COUNTY SHERIFF'S DEPARTMENT et al., Appellants.
WORKERS' COMPENSATION BOARD, Respondent.

Submitted April 18, 2011; decided June 14, 2011

Reported below, 82 AD3d 1334.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TRUMP ON THE OCEAN, LLC, Appellant, v STATE OF NEW YORK,
Respondent.

Submitted April 25, 2011; decided June 14, 2011

Reported below, 79 AD3d 1325.

Motion, insofar as it seeks leave to appeal from that portion of the Appellate Division order that affirmed the Court of Claims order dismissing the claim, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portions of the Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

[952 NE2d 1068, 929 NYS2d 74]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RICHARD D. DiGUGLIELMO, Appellant.

Argued May 31, 2011; decided June 23, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Second Judicial Department, entered May 25, 2010. The Appellate Division (1) reversed, on the law, so much of an order of the Westchester County Court (Rory J. Bellantoni, J.; op 21 Misc 3d 1103[A], 2008 NY Slip Op 51938[U]), as had granted that branch of defendant's motion which was pursuant to CPL 440.10 to vacate a judgment of that court (Peter M. Leavitt, J.), which had convicted defendant, upon a jury verdict, of murder in the second degree, (2) denied the CPL 440.10 motion, (3) reinstated the judgment, and (4) remitted the matter to County Court with directions to promptly direct defendant to surrender himself to that court in order that execution of the judgment may resume.

In 1997, the defendant, an off-duty police officer, was convicted of depraved indifference murder for fatally shooting the victim outside of a store owned by his parents. At trial, defendant had proffered a justification defense, contending that he shot the victim, whom defendant and others had just beaten in a dispute over a parking space, as the victim was about to strike the defendant's father with a baseball bat. In 2006, defendant moved to vacate the judgment of conviction on the grounds that it was not supported by legally sufficient evidence of depraved indifference; that there was newly discovered evidence; and that the People had failed to disclose exculpatory evidence.

The Appellate Division concluded, in part, that defendant's motion to vacate the judgment on the ground that the trial evidence was insufficient to establish that he had acted with depraved indifference should have been summarily denied, since a court must deny such a motion when the issue raised was previously determined on the merits upon an appeal from the judgment. Defendant, on direct appeal, had contested the sufficiency of the evidence, and the issue was decided against him under the law in effect at the time of the judgment. The Appellate Division stated that the sole exception to mandatory summary denial was if there had been a retroactively effective

change in the law controlling such issue since the time of the appellate determination. In addition, the Appellate Division found that although the law regarding depraved indifference murder had changed subsequent to the defendant's direct appeal (*see People v Feingold*, 7 NY3d 288 [2006]), the Court of Appeals unequivocally instructed that the new depraved indifference standard was not to be applied retroactively by way of a CPL article 440 motion.

People v DiGuglielmo, 75 AD3d 206, affirmed.

HEADNOTE

Crimes — Murder — Depraved Indifference Murder — Retroactive Application of Judicial Standard

Defendant was not entitled to vacatur of his conviction for depraved indifference murder on the grounds that the conviction was not supported by legally sufficient evidence of depraved indifference and that the People had failed to disclose exculpatory evidence. Assuming that defendant made a specific request for the material alleged to be exculpatory, there was no reasonable possibility that any failure to disclose it contributed to the verdict. Moreover, the evidence supporting defendant's conviction of depraved indifference murder was not legally insufficient as a result of the decision in *People v Feingold* (7 NY3d 288 [2006]). The standard enunciated in *Feingold* does not apply retroactively to cases on collateral review, and defendant's claim that such a result violates the Federal Due Process Clause was without merit.

APPEARANCES OF COUNSEL

Mayer Brown LLP, New York City (*Andrew H. Schapiro*, *Scott A. Chesin*, *Allison M. Stowell* and *Ames C. Grawert* of counsel), for appellant.

Janet DiFiore, District Attorney, White Plains (*Raffaelina Gianfrancesco*, *Richard Longworth Hecht* and *Maryanne Luciano* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

Assuming that defendant made a specific request for the material alleged to be exculpatory, we find no reasonable possibility that any failure to disclose it contributed to the verdict (*see People v Vilardi*, 76 NY2d 67, 77 [1990]). Moreover, we reject defendant's claim that the evidence supporting his conviction of depraved indifference murder is legally insufficient because of our decision in *People v Feingold* (7 NY3d 288 [2006]). The standard enunciated in *Feingold* simply does not apply retroactively to cases on collateral review (*see Policano v Herbert*, 7

NY3d 588, 603-604 [2006]), and defendant's claim that such a result violates the Federal Due Process Clause is without merit (*Wainwright v Stone*, 414 US 21, 23-24 [1973]).

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

Order affirmed in a memorandum.

In the Matter of BELA BORCSOK, Appellant, v NEW YORK STATE BOARD OF PAROLE, Respondent.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 76 AD3d 1167.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]).

In the Matter of CARRIE B., Appellant, v JOSEPHINE B., Respondent.

Decided June 23, 2011

Reported below, 81 AD3d 1009.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

In the Matter of GALE LEE DAVIS, Appellant, v CITY OF NEW YORK COMPTROLLER et al., Respondents.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 2011 NY Slip Op 67650(U).

Motion for leave to appeal dismissed upon the ground that the Court of Appeals does not have jurisdiction to entertain it (*see* NY Const, art VI, § 3 [b]; CPLR 5602).

In the Matter of DESHAWN D.O. ADMINISTRATION FOR CHILDREN'S SERVICES, Respondent; MARIA T.O., Respondent, and SIDNEY O., Appellant.

Submitted April 4, 2011; decided June 23, 2011

Reported below, 81 AD3d 961.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from, affirming the fact-finding order, does not finally determine the proceeding within the meaning of the Constitution.

ALICE LARAINÉ DIMERY, Appellant, v ULSTER SAVINGS BANK, Respondent.

Decided June 23, 2011

Reported below, 82 AD3d 1034.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the action within the meaning of the Constitution.

ARLENE S. GARLAND, as Executrix of RICHARD T. SHANOR and GANELLE M. SHANOR, Deceased, Appellant, v RLI INSURANCE COMPANY, Respondent, et al., Defendant.

Submitted May 16, 2011; decided June 23, 2011

Reported below, 79 AD3d 1576.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of TOMMY R. JACKSON, Appellant, v WILLIAM WALSH, Onondaga County Court Judge, et al., Respondents.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 2010 NY Slip Op 91671(U).

Motion to vacate this Court's March 31, 2011 dismissal order granted and appeal reinstated [*see* 16 NY3d 826 (2011)]. On the Court's own motion, appeal dismissed, without costs, upon the ground that no substantial constitutional question is directly involved. Motion for leave to appeal denied. Motion for poor person relief dismissed as academic.

MARGARITA MORALES, Appellant, v PERFECT DENTAL, P.C., et al.,
Respondents.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 73 AD3d 877.

Motion, insofar as it seeks leave to appeal from so much of the Appellate Division order as affirmed the July 2009 Supreme Court order, dismissed upon the ground that such portion of the order does not finally determine the action within the meaning of the Constitution; motion for leave to appeal otherwise denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TOBIAS
BOYLAND, Appellant.

Submitted April 18, 2011; decided June 23, 2011

Reported below, 79 AD3d 1658.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v COREY
GAMBLE, Appellant.

Submitted June 6, 2011; decided June 23, 2011

Reported below, 72 AD3d 544.

Motion by appellant pro se to relieve Richard M. Greenberg, Office of the Appellate Defender, as counsel to the appellant herein denied.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v WIL-
LIAM GEORGE, Appellant.

Submitted June 20, 2011; decided June 23, 2011

Reported below, 79 AD3d 1148.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v SALEEM KHAN, Appellant.

Submitted June 13, 2011; decided June 23, 2011

Reported below, 82 AD3d 44.

Motion, pursuant to CPL 460.60 (3), to extend the time for argument or submission of the appeal and to continue the stay granted and stay continued until determination of the appeal.

THE PEOPLE OF THE STATE OF NEW YORK, Appellant, v JAMES PERRY, Respondent.

Submitted June 6, 2011; decided June 23, 2011

Reported below, 81 AD3d 665.

Motion for assignment of counsel granted and Lynn W.L. Fahy, Esq., Appellate Advocates, 2 Rector Street, 10th Floor, New York, NY 10006 assigned as counsel to the respondent on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v RAOUL SOUTH, Appellant.

Submitted June 20, 2011; decided June 23, 2011

Reported below, 47 AD3d 734.

Motion for an extension of the time within which to apply for permission to appeal pursuant to CPL 460.20 granted and motion papers treated as a timely CPL 460.20 application.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v TONY WILLIAM, Appellant.

Submitted June 20, 2011; decided June 23, 2011

Reported below, 81 AD3d 453.

Motion for assignment of counsel granted and Richard M. Greenberg, Esq., Office of the Appellate Defender, 11 Park Place, Suite 1601, New York, NY 10007 assigned as counsel to the appellant on the appeal herein.

THE PEOPLE OF THE STATE OF NEW YORK *ex rel.* VALRICK JOHNSON, Appellant, v JOSEPH E. MCCOY, as Superintendent of Cayuga Correctional Facility, Respondent.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 278 AD2d 865.

Motion for reargument of motion for leave to appeal dismissed as untimely (*see* Rules of Ct of Appeals [22 NYCRR] § 500.24 [b]) [*see* 96 NY2d 709 (2001)]. Motion for poor person relief dismissed as academic.

Judge PIGOTT taking no part.

In the Matter of CONRAD PONS, Appellant, v ANTHONY J. ANNUCCI, as Deputy Commissioner of Correctional Services, Respondent.

Submitted April 4, 2011; decided June 23, 2011

Reported below, 2010 NY Slip Op 75741(U).

Motion, insofar as it seeks leave to appeal from the Appellate Division order denying poor person relief, dismissed upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; motion for leave to appeal otherwise denied.

In the Matter of the Estate of KEVIN W. STANLEY, Deceased. DIANE R. STANLEY, Appellant; LAWRENCE J. MATTAR, ESQ., et al., Respondents.

Submitted May 2, 2011; decided June 23, 2011

On the Court's own motion, appeal dismissed, without costs, upon the ground that the March 2011 Surrogate's Court order appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for leave to appeal dismissed, without costs, upon the ground that the March 2011 Surrogate's Court order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

TOWN OF HUNTINGTON, Respondent, v COUNTY OF SUFFOLK, Appellant.

Submitted March 28, 2011; decided June 23, 2011

Reported below, 79 AD3d 207.

Motion for leave to appeal denied. Motion for a stay etc. dismissed as academic.

TOWN OF OYSTER BAY, Appellant, v GALEN D. KIRKLAND, as Commissioner of the New York State Division of Human Rights, et al., Respondents.

Decided June 23, 2011

Reported below, 81 AD3d 812.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

VERITAS CAPITAL MANAGEMENT, L.L.C., et al., Plaintiffs, v THOMAS J. CAMPBELL, Defendant.

THOMAS J. CAMPBELL, Appellant, v ROBERT B. McKEON, Respondent, et al., Defendants.

Submitted May 2, 2011; decided June 23, 2011

Reported below, 82 AD3d 529.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

SHERRIE WEAVER, Claimant, and DAVID SHEPS, Appellant, v STATE OF NEW YORK, Respondent.

Submitted April 25, 2011; decided June 23, 2011

Reported below, 82 AD3d 878.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

In the Matter of WORLD TRADE CENTER BOMBING LITIGATION.

STEERING COMMITTEE, et al., Respondents, v THE PORT AUTHORITY OF NEW YORK AND NEW JERSEY, Appellant.

Decided June 23, 2011

Reported below, 51 AD3d 337.

Reargument ordered and case set down for argument on August 24, 2011.

Concur: Judges CIPARICK, GRAFFEO, READ, PIGOTT and JONES.
Taking no part: Chief Judge LIPPMAN and Judge SMITH.

MYRON ZUCKERMAN, Respondent, v SYDELL GOLDSTEIN et al.,
Appellants.

Submitted April 18, 2011; decided June 23, 2011

Reported below, 78 AD3d 412.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[952 NE2d 1075, 929 NYS2d 81]

REZPLEX, L.L.C., Respondent, v NEW YORK CITY DEPARTMENT OF HOUSING PRESERVATION AND DEVELOPMENT et al., Appellants.

Decided June 28, 2011

SUMMARY

APPEAL, by permission of the Appellate Division of the Supreme Court in the First Judicial Department, from an order of that Court, entered September 7, 2010. The Appellate Division (1) reversed, on the law, a judgment (denominated an order) of the Supreme Court, Bronx County (Alexander W. Hunter, Jr., J.), entered in a proceeding pursuant to CPLR article 78, which had denied the petition and dismissed the proceeding, and (2) granted the petition. The following question was certified by the Appellate Division: “Was the order of this Court, which reversed the judgment (denominated an order) of Supreme Court, properly made?”

Petitioner commenced a proceeding challenging respondent municipality's charges and lien imposed for the emergency repair of a retaining wall. The Appellate Division concluded that the record established that petitioner was not the owner of the property upon which the wall was located, nor a responsible party.

Rezplex, L.L.C. v New York City Dept. of Hous. Preserv. & Dev., 76 AD3d 802, affirmed.

HEADNOTE

Municipal Corporations — Unsafe Buildings — Nonownership of Property

An order of the Appellate Division, which granted a petition challenging respondent municipality's imposition of charges and a lien imposed for the emergency repair of a retaining wall on the ground that petitioner neither owned the wall nor was responsible for its maintenance, was affirmed. Petitioner's nonownership of the property where the municipality repaired the collapsing retaining wall was adequately raised in petitioner's protest, which stated: "We are not aware of any emergency repair done at [petitioner's] premises."

APPEARANCES OF COUNSEL

Michael A. Cardozo, Corporation Counsel, New York City (*Larry A. Sonnenshein* of counsel), for appellants.

Goodman & Leopold, L.L.P., New York City (*Howard B. Leopold* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed, with costs, and its certified question answered in the affirmative.

Petitioner's nonownership of the property where the City repaired a collapsing retaining wall was adequately raised in petitioner's December 11, 2001 protest, which stated: "We are not aware of any emergency repair done at [petitioner's] premises." Thus we need not decide whether the issue was one that could be raised for the first time after the administrative ruling.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur in memorandum.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed, etc.

In the Matter of CARLOS ABREU, Appellant, v NORMAN R. BEZIO, as Director of Special Housing and Inmate Disciplinary Programs, Respondent.

Decided June 28, 2011

Reported below, 78 AD3d 1341; 2011 NY Slip Op 64407(U).

Appeal, insofar as taken from the Appellate Division order denying leave to appeal to the Court of Appeals, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal, insofar as taken from the Appellate Division judgment dismissing the petition, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

JOEL L. AMAKER, SR., Appellant, v ELIZABETH V. WRIGHT, P.C., Respondent.

Submitted May 9, 2011; decided June 28, 2011

Reported below, 2011 NY Slip Op 66516(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

BRAD H. et al., Appellants, v CITY OF NEW YORK et al., Respondents.

Submitted May 16, 2011; decided June 28, 2011

Reported below, 77 AD3d 103.

Motion to supplement the record on appeal denied.

In the Matter of MICHAEL DIEDERICH, JR., Individually and on Behalf of all Taxpayers of the County of Rockland, Appellant, et al., Petitioner, v CHRISTOPHER ST. LAWRENCE, Defendant, and HOLLAND & KNIGHT, LLP, et al., Respondents.

Decided June 28, 2011

Reported below, 78 AD3d 1290.

Appeal, insofar as taken from the Appellate Division order denying the motion for reargument or leave to appeal, dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that such order does not finally determine the proceeding within the meaning of the Constitution; appeal otherwise dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no substantial constitutional question is directly involved.

SKIP FUNT, Appellant, v HUMAN RESOURCES ADMINISTRATION OF THE CITY OF NEW YORK, Respondent.

Submitted May 9, 2011; decided June 28, 2011

Reported below, 2011 NY Slip Op 67794(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

GoSMILE, INC., Respondent, v JONATHAN B. LEVINE, D.D.S., Appellant.

Submitted May 16, 2011; decided June 28, 2011

Reported below, 81 AD3d 77.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

MARY GRANDY, Respondent, v JAMES A. MCKAY et al., Appellants. (Action No. 1.)

FRANCES I. SINDLINGER, Respondent, v JAMES A. MCKAY et al., Appellants. (Action No. 2.)

Decided June 28, 2011

Reported below, 82 AD3d 1470.

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that the order appealed from does not finally determine the actions within the meaning of the Constitution.

CHARLES R. KIRBY et al., Appellants, v SUBURBAN ELECTRICAL ENGINEERS CONTRACTORS, INC., Respondent, et al., Defendants.

Submitted May 16, 2011; decided June 28, 2011

Reported below, 83 AD3d 1380.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v NYDIA SANTIAGO, Appellant.

Submitted June 6, 2011; decided June 28, 2011

Reported below, 77 AD3d 407.

Motion to strike portions of defendant's brief denied.

In the Matter of MARVIN POLLACK, Appellant; STATE OF NEW YORK et al., Respondents.

Submitted May 9, 2011; decided June 28, 2011

Reported below, 2010 NY Slip Op 83620(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

SEA TRADE MARITIME CORP., Appellant, v HELLENIC MUTUAL WAR RISKS ASSOCIATION (BERMUDA) LTD. et al., Respondents, and GEORGE CHRISTY PETERS, Appellant, et al., Defendants. (And a Third-Party Action.)

Submitted May 9, 2011; decided June 28, 2011

Reported below, 79 AD3d 601; 2011 NY Slip Op 67562(U).

Motion to vacate this Court's March 23, 2011 order of dismissal granted [*see* 16 NY3d 826 (2011)]. On the Court's own motion, appeal, insofar as taken from that portion of the December 2010 Appellate Division order as affirmed so much of Supreme Court's judgment recognizing the foreign arbitration awards and recognizing the foreign judgment, dismissed, without costs, upon the ground that no substantial constitutional question is directly involved; appeal otherwise dismissed, without costs, upon the ground that the remaining portion of the order appealed from does not finally determine the action within the meaning of the Constitution. Motion for leave to appeal, insofar as it seeks leave to appeal from that portion of the December 2010 Appellate Division order as affirmed so much of Supreme Court's judgment recognizing the foreign arbitration awards and recognizing the foreign judgment, denied; motion for leave to appeal otherwise dismissed upon the ground that the remaining portion of the December 2010 Appellate Division order and the March 2011 Appellate Division order sought to be appealed from do not finally determine the action within the meaning of the Constitution.

In the Matter of STATE OF NEW YORK, Respondent, v DANIEL F, Appellant.

Submitted February 28, 2011; decided June 28, 2011

Reported below, 77 AD3d 1400.

Motion for leave to appeal granted. Motion for poor person relief granted.

TOWN OF PUTNAM VALLEY et al., Respondents, v THOMAS CABOT et al., Defendants, and ALEXANDER KASPAR, Appellant.

Submitted May 9, 2011; decided June 28, 2011

Reported below, 82 AD3d 959.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

[952 NE2d 1080, 929 NYS2d 85]

THE PEOPLE OF THE STATE OF NEW YORK, Respondent, v MICHAEL MUNGRO, Appellant.

Decided June 30, 2011

SUMMARY

APPEAL, by permission of an Associate Judge of the Court of Appeals, from an order of the Appellate Division of the Supreme Court in the Fourth Judicial Department, entered June 18, 2010. The Appellate Division affirmed a judgment of the Erie County Court (Thomas P. Franczyk, J.), which had convicted defendant, upon a jury verdict, of robbery in the first degree.

Defendant was a suspect in a robbery but could not be located. He was indicted in absentia on October 25, 2004. The People declared their readiness for trial three days later. Defendant thereafter was located in Ohio and, on July 8, 2005, federal marshals attempted to arrest him there on an Erie County robbery warrant. Defendant, however, escaped. He was arrested in Ohio three days later and charged in Ohio with federal and Ohio crimes as a result of injuring the federal marshals in the course of his escape. The Ohio charges were resolved on September 8, 2005, resulting in a sentence of nine months in jail. Approximately two months later, defendant was indicted by a federal grand jury for assaulting a federal agent, and the United States Attorney's office notified the Erie County District Attorney's office on May 3, 2006 that defendant had pleaded guilty and was awaiting sentencing. Defendant began serving his federal sentence of four years in August 2006, and in October 2006 the Erie County District Attorney received a letter from defendant requesting that he be delivered to Erie County to resolve the instant charge. In December 2006 the District Attorney filed a writ of habeas corpus with federal authorities seeking to have defendant transferred to Erie County for trial. Defendant thereafter was brought to New York on January 4, 2007 and was arraigned the following day.

People v Mungro, 74 AD3d 1902, affirmed.

HEADNOTE**Crimes — Right to Speedy Trial — Presence of Defendant in Another State**

In a robbery prosecution, the People did not violate defendant's right to a speedy trial pursuant to CPL 30.30 by failing to request his presence in New York from federal custody in another state until his prosecution there was

completed and he began serving his sentence. The People had no statutory authority to request defendant's presence until such time (*see* CPL 580.20, art IV [a]) and, therefore, should not be penalized for the time that defendant was unavailable for trial in New York.

APPEARANCES OF COUNSEL

Charles J. Greenberg, Tonawanda, for appellant.

Frank A. Sedita, III, District Attorney, Buffalo (*Michael J. Hillery* of counsel), for respondent.

OPINION OF THE COURT

MEMORANDUM.

The order of the Appellate Division should be affirmed.

The People did not violate defendant's right to a speedy trial pursuant to CPL 30.30 by failing to request his presence in New York from federal custody in Ohio until his prosecution there was completed and he began serving his sentence. The People had no statutory authority to request defendant's presence until such time (*see* CPL 580.20, art IV [a]) and, therefore, should not be penalized for the period of time that defendant was unavailable for trial in New York (*see People v Vrlaku*, 73 NY2d 800, 802 [1988]).

Defendant's claim that the evidence was legally insufficient to support the verdict is unpreserved, and his ineffective assistance of counsel claim is without merit.

Chief Judge LIPPMAN and Judges CIPARICK, GRAFFEO, READ, SMITH, PIGOTT and JONES concur.

On review of submissions pursuant to section 500.11 of the Rules of the Court of Appeals (22 NYCRR 500.11), order affirmed in a memorandum.

In the Matter of DEBORAH BUSH, Appellant, v DIVISION OF HUMAN RIGHTS et al., Respondents.

Submitted May 31, 2011; decided June 30, 2011

Reported below, 78 AD3d 505.

Motion for leave to appeal dismissed as untimely (*see* CPLR 5513 [b]; *Eaton v State of New York*, 76 NY2d 824 [1990]). Motion for poor person relief dismissed as academic.

In the Matter of the Foreclosure of Tax Liens by COUNTY OF SULLIVAN. COUNTY OF SULLIVAN, Respondent; JUDITH ANN FAY et al., Appellants.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 79 AD3d 1409.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

In the Matter of SHAWN GREEN, Appellant, v MARK L. BRADT, as Superintendent of Elmira Correctional Facility, Respondent.

Submitted May 31, 2011; decided June 30, 2011

Reported below, 79 AD3d 1566.

Motion for reargument of motion for leave to appeal denied [see 16 NY3d 709 (2011)].

In the Matter of SHAWN GREEN, Appellant, v BRIAN FISCHER, as Commissioner of Correctional Services, Respondent. (And Another Related Proceeding.)

Submitted May 31, 2011; decided June 30, 2011

Reported below, 77 AD3d 1011.

Motion for reargument of motion for leave to appeal denied [see 16 NY3d 710 (2011)].

In the Matter of the Estate of VERA HYRA, Deceased. BANK OF NEW YORK, as Executor of VERA HYRA, Deceased, Respondent; BOGDAN WISLOCKI et al., Appellants. (And a Related Action.)

Submitted May 16, 2011; decided June 30, 2011

Reported below, 81 AD3d 730.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding or the action within the meaning of the Constitution.

In the Matter of KEITH KNIGHT, Appellant, v NORMAN BEZIO, as
Director of Special Housing and Inmate Disciplinary
Program, Respondent.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 82 AD3d 1381.

Motion for leave to appeal dismissed as untimely (*see* CPLR
5513 [b]).

LAURENCE L. LEFF, Ph.D., as Administrator of the Estate of EVE
LEWIS, Deceased, et al., Appellants, v TIAA-CREF LIFE IN-
SURANCE COMPANY, Respondent.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 81 AD3d 422.

Motion for leave to appeal dismissed upon the ground that
the order sought to be appealed from does not finally determine
the action within the meaning of the Constitution.

In the Matter of LORRAINE D., Appellant, v WIDMACK C. et al.,
Respondents. (And Other Proceedings.)

Submitted May 23, 2011; decided June 30, 2011

Reported below, 79 AD3d 745.

Motion, insofar as it seeks leave to appeal from that portion
of the Appellate Division order which affirmed so much of Fam-
ily Court's order denying that branch of appellant's motion as
sought to vacate the part of Family Court's prior order
determining custody, dismissed upon the ground that such por-
tion of the Appellate Division order sought to be appealed from
does not finally determine the proceedings within the meaning
of the Constitution; motion for leave to appeal otherwise denied.

NELLA MANKO, Appellant, v LENOX HILL HOSPITAL, Respondent.

Decided June 30, 2011

Reported below, 2011 NY Slip Op 65964(U); 2011 NY Slip Op 63995(U); 2011 NY Slip
Op 63513(U).

Appeal dismissed, without costs, by the Court of Appeals, sua
sponte, upon the ground that the orders appealed from do not

finally determine the action within the meaning of the Constitution.

In the Matter of NELLA MANKO, Appellant, et al., Petitioner, v
NEW YORK STATE DIVISION OF HOUSING AND COMMUNITY RE-
NEWAL, OFFICE OF RENT ADMINISTRATION, Respondent.

Decided June 30, 2011

Reported below, 2011 NY Slip Op 63576(U).

Appeal dismissed, without costs, by the Court of Appeals, sua sponte, upon the ground that no appeal lies as of right from the unanimous order of the Appellate Division absent the direct involvement of a substantial constitutional question (CPLR 5601).

FORTUNE MIZRACHI, Respondent, v DANNY MIZRACHI, Appellant.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 82 AD3d 1178.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

THE PEOPLE OF THE STATE OF NEW YORK ex rel. CLIFFORD
GRAHAM, Appellant, v KEVIN WALSH, Sheriff of the Onon-
daga County Sheriff's Department, Respondent.

Submitted May 31, 2011; decided June 30, 2011

Reported below, 2011 NY Slip Op 70017(U).

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution. Motion for poor person relief dismissed as academic.

JOYCE PICKETT et al., Appellants, v FEDERATED DEPARTMENT
STORES, INC., Respondent.

Submitted May 29, 2011; decided June 30, 2011

Reported below, 79 AD3d 1116.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

NORMAN PICKETT et al., Appellants, v ROMLES GIBBS et al., Respondents.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 80 AD3d 592.

Motion for leave to appeal dismissed upon the ground that the order sought to be appealed from does not finally determine the action within the meaning of the Constitution.

Judge JONES taking no part.

In the Matter of WILLIAM C.B., an Infant. ERIE COUNTY DEPARTMENT OF SOCIAL SERVICES, Respondent; JUDY B., Appellant.

Submitted May 23, 2011; decided June 30, 2011

Reported below, 83 AD3d 1583.

Motion, insofar as it seeks leave to appeal from the Appellate Division order that affirmed Family Court's order terminating appellant's parental rights, denied; motion for leave to appeal otherwise dismissed upon the ground that the other Appellate Division order sought to be appealed from does not finally determine the proceeding within the meaning of the Constitution.

**APPEALS DISMISSED PURSUANT TO RULES OF PRACTICE
OF COURT OF APPEALS OR ON CONSENT**

(June 1, 2011 through June 30, 2011)

Houston, Matter of, v D'Emic	2d Dept: 82 AD3d 1099	6/15/11
Montes, Matter of, v Bezio	3d Dept: 79 AD3d 1567	6/15/11
People v Plunkett	4th Dept: 77 AD3d 1442	6/1/11
Stanley, Matter of	Sur Ct, Erie County, Mar. 17, 2011 (79 AD3d 1620, 1624, 1625)	6/23/11

APPEALS WITHDRAWN AND DISCONTINUED

(June 1, 2011 through June 30, 2011)

Dibble v New York City Tr. Auth.	1st Dept: 76 AD3d 272	6/3/11
OTR Media Group, Inc. v City of New York	1st Dept: 83 AD3d 451	6/21/11

APPLICATIONS IN CRIMINAL CASES FOR LEAVE TO APPEAL

(June 1, 2011 through June 30, 2011)

People v Adams	4th Dept: 81 AD3d 1427 (Onondaga)	denied 6/16/11 (Read, J.)
People v Afrika	4th Dept: 79 AD3d 1678 (Erie)	denied 6/29/11 (Lippman, Ch. J.)
People v Alexander	App Div, 1st Dept: 2010 NY Slip Op 90616(U) (NY)	denied reconsideration 6/16/11 (Read, J.)
People v Alvarado	1st Dept: 82 AD3d 458 (NY)	denied 6/23/11 (Read, J.)
People v Alvarez	App Div, 1st Dept: 2011 NY Slip Op 69676(U) (NY)	dismissed 6/22/11 (Grafteo, J.)
People v Ant	3d Dept: 79 AD3d 1460 (Schenectady)	denied 6/10/11 (Jones, J.)
People v Ant Man	3d Dept: 79 AD3d 1460 (Schenectady)	denied 6/10/11 (Jones, J.)
People v Artis (Vincent)	2d Dept: 77 AD3d 847 (Rockland)	denied reconsideration 6/23/11 (Grafteo, J.)
People v Artis (Vincent)	2d Dept: 77 AD3d 848 (Rockland)	denied reconsideration 6/23/11 (Grafteo, J.)
People v Ashley	App Div, 3d Dept: 2011 NY Slip Op 73656(U) (St. Lawrence)	dismissed 6/15/11 (Jones, J.)
People v Augugliaro	2d Dept: 80 AD3d 708 (Queens)	denied 6/7/11 (Ciparick, J.)
People v Avery	3d Dept: 80 AD3d 982 (Albany)	denied 6/7/11 (Ciparick, J.)
People v Ayala	1st Dept: 83 AD3d 469 (NY)	denied 6/6/11 (Lippman, Ch. J.)
People v Bajana	2d Dept: 82 AD3d 1111 (Queens)	denied 6/16/11 (Read, J.)
People v Baker	4th Dept: 81 AD3d 1321 (Monroe)	denied 6/16/11 (Read, J.)
People v Barley	2d Dept: 82 AD3d 996 (Nassau)	denied 6/9/11 (Grafteo, J.)
People v Barnes (Gregory)	App Div, 3d Dept: 2011 NY Slip Op 61277(U) (Schenectady)	denied 6/10/11 (Ciparick, J.)

People v Barnes (Gregory)	App Div, 3d Dept: 2011 NY Slip Op 66593(U) (Schenectady)	dismissed 6/10/11 (Ciparick, J.)
People v Barnett	2d Dept: 81 AD3d 967 (Nassau)	denied 6/29/11 (Lippman, Ch. J.)
People v Bedell	2d Dept: 80 AD3d 773 (Suffolk)	denied 6/9/11 (Read, J.)
People v Bell (Earl)	2d Dept: 82 AD3d 997 (Orange)	denied ¹ 6/15/11 (Smith, J.)
People v Bell (Michael)	4th Dept: 82 AD3d 1651 (Monroe)	denied 6/27/11 (Ciparick, J.)
People v Bennett	4th Dept: 81 AD3d 1305 (Monroe)	denied 6/13/11 (Jones, J.)
People v Bessard	2d Dept: 80 AD3d 773 (Kings)	denied 6/23/11 (Read, J.)
People v Bethune	3d Dept: 80 AD3d 1075 (Albany)	denied 6/23/11 (Lippman, Ch. J.)
People v Black	App Div, 3d Dept: 2011 NY Slip Op 70673(U) (Sullivan)	denied 6/10/11 (Pigott, J.)
People v Boatman	4th Dept: 83 AD3d 1525 (Onondaga)	denied 6/24/11 (Smith, J.)
People v Bonilla	1st Dept: 81 AD3d 555 (NY)	denied 6/10/11 (Ciparick, J.)
People v Bonner	4th Dept: 79 AD3d 1790 (Erie)	denied 6/10/11 (Jones, J.)
People v Bosley	4th Dept: 82 AD3d 1694 (Erie)	denied 6/27/11 (Ciparick, J.)
People v Boutin	4th Dept: 81 AD3d 1399 (Onondaga)	denied 6/23/11 (Read, J.)
People v Bowen (Donnie)	4th Dept: 81 AD3d 1300 (Monroe)	denied 6/27/11 (Lippman, Ch. J.)
People v Bowen (Donny)	4th Dept: 81 AD3d 1300 (Monroe)	denied 6/27/11 (Lippman, Ch. J.)
People v Box	County Ct, 2/3/11 (Monroe)	denied reconsideration 6/23/11 (Read, J.)
People v Briggs	2d Dept: 82 AD3d 1001 (Kings)	denied 6/9/11 (Read, J.)
People v Brown (Craig)	2d Dept: 81 AD3d 659 (Kings)	denied 6/7/11 (Ciparick, J.)
People v Brown (Dana)	4th Dept: 82 AD3d 1698 (Wyoming)	denied 6/16/11 (Smith, J.)
People v Brown (Keith)	2d Dept: 81 AD3d 969 (Richmond)	denied 6/29/11 (Lippman, Ch. J.)
People v Brown (Richard)	1st Dept: 82 AD3d 585 (NY)	denied 6/29/11 (Lippman, Ch. J.)
People v Brown (Steven)	1st Dept: 81 AD3d 499 (NY)	denied 6/13/11 (Jones, J.)
People v Bryant	2d Dept: 82 AD3d 1114 (Queens)	denied 6/30/11 (Lippman, Ch. J.)

1. Denied with leave to renew within 30 days after the Court renders a decision in *People v Bussey* (82 AD3d 1002 [2011], *lv granted* 17 NY3d 793 [2011]).

MEMORANDA

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People v Burgess	2d Dept: 81 AD3d 969 (Nassau)	denied 6/27/11 (Ciparick, J.)
People v Burgos (Christian)	1st Dept: 82 AD3d 550 (Bronx)	denied 6/14/11 (Lippman, Ch. J.)
People v Burgos (Jose)	1st Dept: 81 AD3d 558 (NY)	denied 6/23/11 (Read, J.)
People v Burkhardt	2d Dept: 81 AD3d 970 (Suffolk)	denied 6/9/11 (Grafteo, J.)
People v Bussey (Harvey)	4th Dept: 81 AD3d 1276 (Monroe)	denied 6/10/11 (Ciparick, J.)
People v Bussey (Monroe)	2d Dept: 82 AD3d 1002 (Orange)	granted 6/15/11 (Smith, J.)
People v Bynes	App Term, 2d Dept: 30 Misc 3d 144(A) (Kings)	denied 6/15/11 (Pigott, J.)
People v Campbell	1st Dept: 79 AD3d 624 (NY)	denied 6/30/11 (Read, J.)
People v Carr	4th Dept: 81 AD3d 1387 (Erie)	denied 6/29/11 (Lippman, Ch. J.)
People v Carter (Jonathan)	4th Dept: 79 AD3d 1831 (Erie)	denied 6/17/11 (Lippman, Ch. J.)
People v Carter (William)	1st Dept: 82 AD3d 427 (NY)	denied 6/7/11 (Ciparick, J.)
People v Cass	2d Dept: 79 AD3d 768 (Kings)	granted 6/8/11 (Grafteo, J.)
People v Chatt	4th Dept: 77 AD3d 1285 (Erie)	denied 6/10/11 (Jones, J.)
People v Cheatham	2d Dept: 81 AD3d 971 (Kings)	denied 6/7/11 (Ciparick, J.)
People v Christopher	1st Dept: 82 AD3d 444 (NY)	denied 6/29/11 (Lippman, Ch. J.)
People v Clark	1st Dept: 83 AD3d 577 (NY)	denied 6/22/11 (Pigott, J.)
People v Clemente	2d Dept: 84 AD3d 829 (Queens)	denied 6/23/11 (Grafteo, J.)
People v C-Murder	4th Dept: 82 AD3d 1677 (Monroe)	denied 6/16/11 (Pigott, J.)
People v Cohen	2d Dept: 82 AD3d 786 (Suffolk)	denied 6/27/11 (Lippman, Ch. J.)
People v Coleman	4th Dept: 82 AD3d 1593 (Cayuga)	denied 6/16/11 (Read, J.)
People v Colville	2d Dept: 79 AD3d 189 (Kings)	granted 6/27/11 (Read, J.)
People v Confident	2d Dept: 83 AD3d 957 (Queens)	denied 6/30/11 (Lippman, Ch. J.)
People v Cook	App Term, 2d Dept: 30 Misc 3d 134(A) (Nassau)	denied 6/9/11 (Lippman, Ch. J.)
People v Crisler	4th Dept: 81 AD3d 1308 (Monroe)	denied 6/17/11 (Lippman, Ch. J.)
People v Cruz (Hector)	4th Dept: 81 AD3d 1300 (Ontario)	denied 6/23/11 (Lippman, Ch. J.)

People v Cruz (Venturo)	1st Dept: 81 AD3d 562 (NY)	denied 6/6/11 (Ciparick, J.)
People v Curnen	App Div, 2d Dept: 2011 NY Slip Op 71806(U) (Putnam)	dismissed 6/15/11 (Jones, J.)
People v Daley	App Term, 1st Dept: 31 Misc 3d 136(A) (Bronx)	denied 6/27/11 (Ciparick, J.)
People v Danthuluri	App Term, 2d Dept: 31 Misc 3d 56 (Queens)	denied 6/13/11 (Jones, J.)
People v Darkins	2d Dept: 81 AD3d 846 (Westchester)	denied 6/16/11 (Read, J.)
People v Davis (Ikiem)	3d Dept: 83 AD3d 1210 (Albany)	denied 6/9/11 (Grafteo, J.)
People v Davis (Kevin)	2d Dept: 80 AD3d 623 (Kings)	denied 6/15/11 (Lippman, Ch. J.)
People v Dawkins	2d Dept: 81 AD3d 972 (Kings)	denied 6/23/11 (Read, J.)
People v Delancy	4th Dept: 81 AD3d 1446 (Monroe)	denied 6/10/11 (Ciparick, J.)
People v Devers	2d Dept: 82 AD3d 1261 (Westchester)	denied 6/16/11 (Smith, J.)
People v Devon R.	1st Dept: 79 AD3d 528 (NY)	denied 6/30/11 (Read, J.)
People v Diaz	1st Dept: 81 AD3d 516 (NY)	denied 6/29/11 (Lippman, Ch. J.)
People v DiTucci (David)	4th Dept: 81 AD3d 1249 (Monroe)	denied 6/8/11 (Ciparick, J.)
People v DiTucci (David)	4th Dept: 81 AD3d 1250 (Monroe)	denied 6/8/11 (Ciparick, J.)
People v Doe	2d Dept: 78 AD3d 1072 (Queens)	denied 6/30/11 (Read, J.)
People v Dunham	4th Dept: 83 AD3d 1423 (Oswego)	denied 6/9/11 (Read, J.)
People v Dunn	4th Dept: 83 AD3d 1421 (Monroe)	denied 6/9/11 (Grafteo, J.)
People v Ebert	3d Dept: 81 AD3d 1042 (Saratoga)	denied 6/27/11 (Lippman, Ch. J.)
People v Eddy	County Ct, 1/24/11 (Monroe)	denied 6/29/11 (Lippman, Ch. J.)
People v Edwards	2d Dept: 82 AD3d 1005 (Kings)	denied 6/9/11 (Pigott, J.)
People v Elamin	4th Dept: 82 AD3d 1664 (Erie)	denied 6/16/11 (Read, J.)
People v Emerson	1st Dept: 79 AD3d 454 (Bronx)	denied 6/10/11 (Jones, J.)
People v Emiliano	1st Dept: 81 AD3d 436 (Bronx)	denied 6/23/11 (Read, J.)
People v Erle	4th Dept: 83 AD3d 1442 (Niagara)	denied 6/6/11 (Pigott, J.)
People v Escalante	1st Dept: 83 AD3d 419 (NY)	denied 6/27/11 (Ciparick, J.)

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People v Evans	1st Dept: 79 AD3d 454 (Bronx)	denied 6/10/11 (Jones, J.)
People v Fields	2d Dept: 79 AD3d 1147 (Westchester)	denied reconsideration 6/23/11 (Grafteo, J.)
People v Figueroa (Louis)	2d Dept: 82 AD3d 1006 (Dutchess)	denied 6/27/11 (Ciparick, J.)
People v Figueroa (Luis)	2d Dept: 82 AD3d 1006 (Dutchess)	denied 6/27/11 (Ciparick, J.)
People v Fleeman	3d Dept: 82 AD3d 1361 (Warren)	denied 6/9/11 (Read, J.)
People v Flowers	1st Dept: 83 AD3d 524 (NY)	denied 6/23/11 (Grafteo, J.)
People v Foss	4th Dept: 81 AD3d 1375 (Niagara)	denied 6/30/11 (Lippman, Ch. J.)
People v Foxworth	1st Dept: 81 AD3d 547 (NY)	denied 6/10/11 (Ciparick, J.)
People v Francis	2d Dept: 82 AD3d 1263 (Nassau)	denied 6/23/11 (Read, J.)
People v Franco	1st Dept: 84 AD3d 441 (NY)	denied 6/22/11 (Smith, J.)
People v Frey	1st Dept: 78 AD3d 581 (NY)	denied 6/30/11 (Read, J.)
People v Fulmore	2d Dept: 78 AD3d 1074 (Kings)	denied 6/30/11 (Read, J.)
People v Gamble	4th Dept: 79 AD3d 1738 (Erie)	denied 6/30/11 (Read, J.)
People v Gardner	2d Dept: 80 AD3d 711 (Kings)	denied 6/6/11 (Pigott, J.)
People v Gause	4th Dept: 81 AD3d 1293 (Monroe)	granted 6/29/11 (Lippman, Ch. J.)
People v Ghost	4th Dept: 82 AD3d 1657 (Monroe)	denied 6/9/11 (Grafteo, J.)
People v Gidron	2d Dept: 81 AD3d 973 (Nassau)	denied 6/7/11 (Ciparick, J.)
People v Gillietti	1st Dept: 83 AD3d 444 (NY)	denied 6/9/11 (Grafteo, J.)
People v Goodrich	County Ct, 3/31/11 (Delaware)	denied 6/7/11 (Smith, J.)
People v Grant	2d Dept: 83 AD3d 862 (Queens)	denied 6/23/11 (Grafteo, J.)
People v Green	3d Dept: 82 AD3d 1453 (Warren)	denied 6/16/11 (Pigott, J.)
People v Griffin	2d Dept: 81 AD3d 743 (Nassau)	denied 6/23/11 (Lippman, Ch. J.)
People v Gueye	2d Dept: 81 AD3d 974 (Queens)	denied 6/10/11 (Ciparick, J.)
People v Gumpton	4th Dept: 81 AD3d 1441 (Niagara)	denied 6/7/11 (Ciparick, J.)

People v Haffiz	2d Dept: 77 AD3d 767 (Suffolk)	granted 6/10/11 (Jones, J.)
People v Halter	4th Dept: 81 AD3d 1446 (Monroe)	granted 6/24/11 (Pigott, J.)
People v Hampton	2d Dept: 81 AD3d 974 (Kings)	denied 6/30/11 (Lippman, Ch. J.)
People v Hannah	County Ct, 4/1/11 (Monroe)	denied 6/24/11 (Smith, J.)
People v Harper	2d Dept: 79 AD3d 944 (Queens)	denied 6/27/11 (Lippman, Ch. J.)
People v Harris (Audra)	2d Dept: 79 AD3d 1069 (Queens)	denied reconsideration 6/13/11 (Jones, J.)
People v Harris (Howard)	4th Dept: 79 AD3d 1778 (Monroe)	denied 6/29/11 (Lippman, Ch. J.)
People v Haxhia	1st Dept: 81 AD3d 414 (Bronx)	denied 6/23/11 (Pigott, J.)
People v Hecht	3d Dept: 83 AD3d 1289 (Ulster)	denied 6/23/11 (Grafteo, J.)
People v Henderson	2d Dept: 83 AD3d 864 (Nassau)	denied 6/16/11 (Smith, J.)
People v Henry	2d Dept: 76 AD3d 683 (Nassau)	denied reconsideration 6/30/11 (Read, J.)
People v Hernandez	4th Dept: 83 AD3d 1581 (Monroe)	withdrawn 6/10/11 (Smith, J.)
People v Hillard	4th Dept: 79 AD3d 1757 (Monroe)	denied 6/10/11 (Jones, J.)
People v Hilliard	4th Dept: 79 AD3d 1757 (Monroe)	denied 6/10/11 (Jones, J.)
People v Hines	4th Dept: 82 AD3d 1694 (Cayuga)	denied 6/9/11 (Read, J.)
People v Hinson	1st Dept: 79 AD3d 621 (Bronx)	denied 6/17/11 (Lippman, Ch. J.)
People v Hobson	2d Dept: 80 AD3d 776 (Suffolk)	denied 6/16/11 (Read, J.)
People v Holden	2d Dept: 82 AD3d 792 (Queens)	denied 6/10/11 (Ciparick, J.)
People v Holloman	1st Dept: 81 AD3d 573 (NY)	denied 6/6/11 (Ciparick, J.)
People v Hong Wu	2d Dept: 81 AD3d 849 (Queens)	denied 6/10/11 (Ciparick, J.)
People v Horvath	2d Dept: 81 AD3d 850 (Orange)	dismissed 6/8/11 (Jones, J.)
People v Hurst	1st Dept: 83 AD3d 499 (NY)	denied 6/24/11 (Smith, J.)
People v Ingram	4th Dept: 81 AD3d 1277 (Onondaga)	granted 6/6/11 (Ciparick, J.)
People v Jackson	App Div, 1st Dept: 2011 NY Slip Op 64076(U) (NY)	denied 6/23/11 (Lippman, Ch. J.)

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People v James	App Term, 2d Dept: 31 Misc 3d 130(A) (Queens)	denied 6/22/11 (Pigott, J.)
People v Jean-Francois	3d Dept: 82 AD3d 1366 (Schenectady)	denied 6/13/11 (Jones, J.)
People v Jenkins	App Term, 2d Dept: 31 Misc 3d 127(A) (Kings)	denied 6/29/11 (Lippman, Ch. J.)
People v Jeon	App Term, 2d Dept: 31 Misc 3d 130(A) (Queens)	denied 6/9/11 (Grafteo, J.)
People v Johnson (Cory)	1st Dept: 82 AD3d 444 (NY)	denied 6/29/11 (Lippman, Ch. J.)
People v Johnson (Harold)	App Div, 3d Dept: 2010 NY Slip Op 83967(U) (Albany)	denied 6/30/11 (Read, J.)
People v Jones (Cyress)	4th Dept: 82 AD3d 1582 (Erie)	denied 6/27/11 (Ciparick, J.)
People v Jones (David)	1st Dept: 81 AD3d 573 (NY)	denied 6/7/11 (Ciparick, J.)
People v Jones (Ty)	4th Dept: 81 AD3d 1313 (Erie)	denied 6/30/11 (Lippman, Ch. J.)
People v Kent	2d Dept: 79 AD3d 52 (Dutchess)	granted 6/10/11 (Jones, J.)
People v Kindler	2d Dept: 83 AD3d 964 (Queens)	denied 6/9/11 (Grafteo, J.)
People v King (Joesun)	1st Dept: 84 AD3d 473 (NY)	denied 6/23/11 (Grafteo, J.)
People v King (Thomas)	2d Dept: 82 AD3d 905 (Kings)	denied 6/27/11 (Ciparick, J.)
People v Kruppenbacher	3d Dept: 81 AD3d 1169 (Schenectady)	denied 6/7/11 (Ciparick, J.)
People v Kulmatycki	2d Dept: 83 AD3d 734 (Suffolk)	denied 6/22/11 (Smith, J.)
People v LaBarge	3d Dept: 80 AD3d 892 (Clinton)	denied 6/27/11 (Lippman, Ch. J.)
People v Lashway	County Ct, 11/23/10 (Oneida)	denied 6/16/11 (Read, J.)
People v Lawrence	4th Dept: 81 AD3d 1326 (Erie)	denied 6/8/11 (Jones, J.)
People v Leader	App Div, 3d Dept: 2010 NY Slip Op 87637(U) (Rensselaer)	denied 6/13/11 (Jones, J.)
People v Lee	3d Dept: 82 AD3d 1495 (Ulster)	denied 6/22/11 (Smith, J.)
People v Legg	1st Dept: 82 AD3d 668 (NY)	denied 6/29/11 (Lippman, Ch. J.)
People v Lewis	3d Dept: 83 AD3d 1206 (Albany)	denied 6/23/11 (Read, J.)
People v Liggins	4th Dept: 82 AD3d 1625 (Oneida)	denied 6/22/11 (Smith, J.)
People v Lobban (Lynden)	2d Dept: 82 AD3d 1010 (Kings)	denied 6/6/11 (Pigott, J.)
People v Lobban (Lyndon)	2d Dept: 82 AD3d 1010 (Kings)	denied 6/6/11 (Pigott, J.)

People v Lopez	App Div, 2d Dept: 2011 NY Slip Op 69316(U) (Kings)	dismissed 6/30/11 (Read, J.)
People v Luisi	2d Dept: 81 AD3d 980 (Suffolk)	denied 6/7/11 (Ciparick, J.)
People v Mack	1st Dept: 82 AD3d 663 (NY)	denied 6/6/11 (Pigott, J.)
People v Magnetti	2d Dept: 78 AD3d 863 (Westchester)	denied 6/23/11 (Lippman, Ch. J.)
People v Manuel	4th Dept: 79 AD3d 1817 (Wayne)	denied 6/9/11 (Lippman, Ch. J.)
People v Marcus	App Term, 2d Dept: 29 Misc 3d 144(A) (Kings)	denied 6/10/11 (Jones, J.)
People v Marti	1st Dept: 81 AD3d 418 (NY)	denied 6/9/11 (Read, J.)
People v Martinez (Joseph)	2d Dept: 78 AD3d 966 (Dutchess)	denied 6/30/11 (Read, J.)
People v Martinez (Wilfredo)	1st Dept: 81 AD3d 481 (NY)	denied 6/8/11 (Jones, J.)
People v Mathieu	2d Dept: 83 AD3d 735 (Nassau)	denied 6/9/11 (Grafteo, J.)
People v Mayes	1st Dept: 82 AD3d 674 (Bronx)	denied 6/23/11 (Read, J.)
People v McCloud	2d Dept: 79 AD3d 1150 (Queens)	denied 6/29/11 (Lippman, Ch. J.)
People v McCullough	4th Dept: 83 AD3d 1438 (Monroe)	denied 6/9/11 (Pigott, J.)
People v Medina	2d Dept: 79 AD3d 909 (Westchester)	denied 6/6/11 (Ciparick, J.)
People v Meyers	2d Dept: 80 AD3d 715 (Orange)	denied 6/6/11 (Lippman, Ch. J.)
People v Mickens	1st Dept: 82 AD3d 430 (NY)	denied 6/27/11 (Ciparick, J.)
People v Miller	2d Dept: 82 AD3d 1127 (Kings)	denied 6/9/11 (Pigott, J.)
People v Mixon	4th Dept: 77 AD3d 1455 (Erie)	denied reconsideration 6/27/11 (Lippman, Ch. J.)
People v Moore	4th Dept: 78 AD3d 1658 (Appeal No. 2) (Onondaga)	denied 6/7/11 (Smith, J.)
People v Morris	4th Dept: 78 AD3d 1613 (Erie)	denied 6/15/11 (Lippman, Ch. J.)
People v Mosby	App Div, 3d Dept: 2011 NY Slip Op 65214(U) (Tompkins)	denied reconsideration 6/9/11 (Read, J.)
People v Murray	4th Dept: 82 AD3d 1621 (Oneida)	denied 6/9/11 (Grafteo, J.)
People v Nash	2d Dept: 83 AD3d 872 (Westchester)	denied 6/22/11 (Pigott, J.)
People v Newland	3d Dept: 83 AD3d 1202 (Broome)	denied 6/23/11 (Read, J.)

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People v Orange	1st Dept: 81 AD3d 428 (Bronx)	denied 6/8/11 (Jones, J.)
People v Ortiz	2d Dept: 78 AD3d 737 (Kings)	denied 6/6/11 (Lippman, Ch. J.)
People v Pace	4th Dept: 83 AD3d 1602 (Niagara)	denied 6/29/11 (Grafteo, J.)
People v Paulin	2d Dept: 82 AD3d 910 (Dutchess)	denied 6/13/11 (Jones, J.)
People v Pearson	2d Dept: 78 AD3d 968 (Kings)	denied 6/30/11 (Read, J.)
People v Peavey	1st Dept: 81 AD3d 544 (NY)	denied 6/10/11 (Smith, J.)
People v Perez	3d Dept: 82 AD3d 1451 (Columbia)	denied 6/22/11 (Pigott, J.)
People v Person	2d Dept: 74 AD3d 1239 (Queens)	denied 6/23/11 (Read, J.)
People v Peterkin	4th Dept: 81 AD3d 1358 (Monroe)	denied 6/16/11 (Read, J.)
People v Phelan	3d Dept: 82 AD3d 1279 (Albany)	denied 6/13/11 (Jones, J.)
People v Pieczynski	4th Dept: 81 AD3d 1300 (Erie)	denied 6/30/11 (Read, J.)
People v Pollard	1st Dept: 78 AD3d 618 (Bronx)	denied 6/23/11 (Lippman, Ch. J.)
People v Powell (Joyce)	4th Dept: 79 AD3d 1791 (Monroe)	denied 6/9/11 (Lippman, Ch. J.)
People v Powell (Troy)	4th Dept: 81 AD3d 1307 (Oswego)	denied 6/10/11 (Ciparick, J.)
People v Quintana	1st Dept: 80 AD3d 499 (NY)	denied 6/15/11 (Lippman, Ch. J.)
People v Rabideau	3d Dept: 82 AD3d 1283 (Clinton)	denied 6/7/11 (Ciparick, J.)
People v Ramos	2d Dept: 80 AD3d 716 (Kings)	granted 6/14/11 (Lippman, Ch. J.)
People v Redmon	2d Dept: 81 AD3d 752 (Kings)	denied reconsideration 6/22/11 (Smith, J.)
People v Reed	4th Dept: 82 AD3d 1632 (Monroe)	denied 6/27/11 (Ciparick, J.)
People v Reid	3d Dept: 82 AD3d 1495 (Albany)	granted 6/16/11 (Pigott, J.)
People v Reinhardt	4th Dept: 82 AD3d 1592 (Oswego)	denied 6/23/11 (Read, J.)
People v Resto-Perez	1st Dept: 82 AD3d 532 (NY)	denied 6/7/11 (Smith, J.)
People v Rich	2d Dept: 78 AD3d 1200 (Suffolk)	denied 6/7/11 (Pigott, J.)
People v Rivas	2d Dept: 78 AD3d 739 (Queens)	denied 6/20/11 (Lippman, Ch. J.)

People v Rivera (Benjamin)	4th Dept: 82 AD3d 1590 (Monroe)	denied 6/8/11 (Smith, J.)
People v Rivera (Benjamin)	4th Dept: 82 AD3d 1592 (Monroe)	denied 6/8/11 (Smith, J.)
People v Robinson (Russell)	2d Dept: 81 AD3d 859 (Suffolk)	denied 6/27/11 (Ciparick, J.)
People v Robinson (Sterling)	2d Dept: 82 AD3d 1269 (Kings)	denied 6/27/11 (Ciparick, J.)
People v Rodriguez (Carlos)	1st Dept: 83 AD3d 449 (NY)	denied 6/24/11 (Pigott, J.)
People v Rodriguez (Emmanuel)	4th Dept: 82 AD3d 1614 (Erie)	denied 6/10/11 (Smith, J.)
People v Rodriguez (Jose)	1st Dept: 83 AD3d 419 (NY)	denied 6/27/11 (Ciparick, J.)
People v Rodriguez (Wilson)	App Div, 1st Dept: 2011 NY Slip Op 67582(U) (Bronx)	denied 6/14/11 (Grafteo, J.)
People v Ross	2d Dept: 83 AD3d 741 (Queens)	denied 6/9/11 (Grafteo, J.)
People v Rossi	2d Dept: 82 AD3d 911 (Kings)	denied 6/16/11 (Read, J.)
People v Roundtree	1st Dept: 83 AD3d 455 (NY)	denied 6/9/11 (Grafteo, J.)
People v Rugato	2d Dept: 82 AD3d 1013 (Queens)	denied 6/7/11 (Smith, J.)
People v Russell	4th Dept: 83 AD3d 1463 (Onondaga)	denied 6/9/11 (Grafteo, J.)
People v Rusty	4th Dept: 77 AD3d 1285 (Erie)	denied 6/10/11 (Jones, J.)
People v Sadian	2d Dept: 81 AD3d 987 (Nassau)	denied 6/27/11 (Ciparick, J.)
People v St. Juste	2d Dept: 83 AD3d 742 (Kings)	denied 6/23/11 (Grafteo, J.)
People v Saladeen	4th Dept: 81 AD3d 1386 (Erie)	denied 6/10/11 (Ciparick, J.)
People v Samuel	2d Dept: 84 AD3d 841 (Queens)	denied 6/23/11 (Grafteo, J.)
People v Sandoval	1st Dept: 83 AD3d 507 (Bronx)	denied 6/22/11 (Pigott, J.)
People v Sands	4th Dept: 81 AD3d 1263 (Orleans)	denied 6/27/11 (Lippman, Ch. J.)
People v Santiago (Shawn)	1st Dept: 82 AD3d 479 (NY)	denied 6/30/11 (Read, J.)
People v Santiago (Victor)	4th Dept: 83 AD3d 1471 (Monroe)	denied 6/16/11 (Pigott, J.)
People v Santi D.	1st Dept: 80 AD3d 489 (Bronx)	denied 6/13/11 (Jones, J.)
People v Schanz	3d Dept: 82 AD3d 1417 (Schoharie)	denied 6/27/11 (Lippman, Ch. J.)
People v Schweitzer	1st Dept: 83 AD3d 503 (NY)	denied 6/23/11 (Grafteo, J.)

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People v Scott (Charlie)	4th Dept: 78 AD3d 1531 (Monroe)	denied 6/6/11 (Lippman, Ch. J.)
People v Scott (Javonne)	4th Dept: 81 AD3d 1470 (Monroe)	denied 6/24/11 (Pigott, J.)
People v Selby	1st Dept: 82 AD3d 433 (NY)	denied 6/23/11 (Read, J.)
People v Sellers	App Div, 1st Dept: 2010 NY Slip Op 76741(U) (Bronx)	denied 6/7/11 (Ciparick, J.)
People v Serrano	2d Dept: 81 AD3d 753 (Nassau)	denied 6/15/11 (Lippman, Ch. J.)
People v Seymore	1st Dept: 79 AD3d 477 (Bronx)	denied 6/23/11 (Lippman, Ch. J.)
People v Shaffer	2d Dept: 81 AD3d 989 (Dutchess)	denied 6/8/11 (Jones, J.)
People v Sharpe	App Div, 2d Dept: 2011 NY Slip Op 68811(U) (Suffolk)	dismissed 6/6/11 (Lippman, Ch. J.)
People v Shaw	2d Dept: 83 AD3d 1101 (Dutchess)	denied 6/29/11 (Grafteo, J.)
People v Sherman	4th Dept: 78 AD3d 1613 (Oswego)	denied 6/30/11 (Read, J.)
People v Simons	2d Dept: 82 AD3d 1132 (Queens)	denied 6/23/11 (Read, J.)
People v Simpson (Theodore)	App Div, 1st Dept: 2010 NY Slip Op 79752(U) (Bronx)	denied reconsideration 6/6/11 (Lippman, Ch. J.)
People v Simpson (Theodore)	App Div, 1st Dept: 2010 NY Slip Op 91825(U) (Bronx)	denied reconsideration 6/6/11 (Lippman, Ch. J.)
People v Singleton	County Ct, 3/9/11 (Monroe)	denied ² 6/9/11 (Grafteo, J.)
People v Small (Bernard)	2d Dept: 80 AD3d 786 (Kings)	denied 6/14/11 (Grafteo, J.)
People v Small (Norman)	3d Dept: 82 AD3d 1451 (Warren)	denied 6/22/11 (Smith, J.)
People v Smalls	1st Dept: 82 AD3d 600 (NY)	denied 6/16/11 (Pigott, J.)
People v Smikle	4th Dept: 82 AD3d 1697 (Erie)	denied 6/8/11 (Smith, J.)
People v Smith (Leron)	1st Dept: 83 AD3d 470 (NY)	denied 6/9/11 (Pigott, J.)
People v Smith (Roland)	2d Dept: 82 AD3d 1133 (Kings)	denied 6/10/11 (Read, J.)
People v Solomon	4th Dept: 73 AD3d 1440 (Niagara)	granted 6/7/11 (Pigott, J.)
People v Sprague	4th Dept: 82 AD3d 1649 (Monroe)	denied 6/23/11 (Read, J.)

². Denied with leave to renew within 30 days after the Court renders a decision in *People v Jackson* (27 Misc 3d 5 [2010], *lv granted* 16 NY3d 832 [2011]).

People v Steck	3d Dept: 83 AD3d 1297 (Ulster)	denied 6/22/11 (Pigott, J.)
People v Steven B.	2d Dept: 81 AD3d 843 (Dutchess)	denied 6/7/11 (Ciparick, J.)
People v Stradford	1st Dept: 81 AD3d 473 (Bronx)	denied 6/10/11 (Ciparick, J.)
People v Suber	App Term, 2d Dept: — Misc 3d —, 2011 NY Slip Op 21128 (Kings)	granted 6/16/11 (Grafteo, J.)
People v Sulli	4th Dept: 81 AD3d 1309 (Monroe)	denied 6/7/11 (Ciparick, J.)
People v Sykes	App Term, 2d Dept: 31 Misc 3d 126(A) (Kings)	denied 6/27/11 (Ciparick, J.)
People v “T”	4th Dept: 82 AD3d 1694 (Cayuga)	denied 6/9/11 (Read, J.)
People v Theard	2d Dept: 80 AD3d 632 (Queens)	denied 6/30/11 (Read, J.)
People v Thomas (Herman)	App Div, 1st Dept: 2011 NY Slip Op 69253(U) (NY)	denied 6/23/11 (Grafteo, J.)
People v Thomas (Sheldon)	2d Dept: 79 AD3d 1153 (Kings)	denied 6/29/11 (Lippman, Ch. J.)
People v Thompson	App Div, 4th Dept, 5/12/11 (Wayne)	dismissed 6/28/11 (Ciparick, J.)
People v Toliver	4th Dept: 82 AD3d 1581 (Erie)	denied 6/23/11 (Read, J.)
People v Torres (Gillian)	App Div, 2d Dept: 2011 NY Slip Op 68363(U) (Kings)	dismissed 6/9/11 (Pigott, J.)
People v Torres (Miguel)	1st Dept: 83 AD3d 475 (NY)	denied 6/8/11 (Smith, J.)
People v Tulloch	4th Dept: 83 AD3d 1558 (Erie)	denied 6/23/11 (Grafteo, J.)
People v Tutt	2d Dept: 82 AD3d 1273 (Queens)	denied 6/22/11 (Pigott, J.)
People v VanDeViver	App Div, 4th Dept, 2/9/11 (Oswego)	denied reconsideration 6/23/11 (Grafteo, J.)
People v Vandover	App Term, 2d Dept: 31 Misc 3d 131(A) (Orange)	granted 6/7/11 (Pigott, J.)
People v Vazquez	2d Dept: 82 AD3d 1273 (Nassau)	denied 6/9/11 (Grafteo, J.)
People v Velez	1st Dept: 79 AD3d 542 (Bronx)	granted 6/23/11 (Read, J.)
People v Verdejo	1st Dept: 83 AD3d 455 (NY)	denied 6/9/11 (Grafteo, J.)
People v Walters	2d Dept: 83 AD3d 1107 (Dutchess)	denied 6/23/11 (Grafteo, J.)
People v Washington	4th Dept: 82 AD3d 1693 (Erie)	denied 6/16/11 (Read, J.)
People v Waters	2d Dept: 81 AD3d 673 (Kings)	denied 6/6/11 (Ciparick, J.)

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People v Wellborn	4th Dept: 82 AD3d 1657 (Monroe)	denied 6/9/11 (Grafteo, J.)
People v Wester	4th Dept: 82 AD3d 1677 (Monroe)	denied 6/16/11 (Pigott, J.)
People v White (Antwon)	3d Dept: 79 AD3d 1460 (Schenectady)	denied 6/10/11 (Jones, J.)
People v White (Gary)	2d Dept: 78 AD3d 868 (Kings)	denied 6/30/11 (Read, J.)
People v White (Rian)	App Term, 2d Dept: 31 Misc 3d 130(A) (Suffolk)	denied 6/9/11 (Grafteo, J.)
People v Wildrick	4th Dept: 83 AD3d 1455 (Ontario)	denied 6/22/11 (Pigott, J.)
People v Williams (Alfonso)	4th Dept: 81 AD3d 1291 (Monroe)	denied 6/13/11 (Jones, J.)
People v Williams (Angela)	App Div, 3d Dept: 2011 NY Slip Op 73981(U) (Tioga)	dismissed 6/24/11 (Smith, J.)
People v Williams (Angela)	App Div, 4th Dept, 11/18/10 (Onondaga)	dismissed 6/9/11 (Read, J.)
People v Williams (Anthony)	4th Dept: 81 AD3d 1276 (Erie)	denied 6/7/11 (Ciparick, J.)
People v Williams (Damian)	2d Dept: 78 AD3d 1072 (Queens)	denied 6/30/11 (Read, J.)
People v Williams (Durrell)	2d Dept: 83 AD3d 744 (Queens)	denied 6/16/11 (Pigott, J.)
People v Williams (Ganielle)	2d Dept: 81 AD3d 861 (Kings)	denied 6/7/11 (Ciparick, J.)
People v Williams (Ronnie)	2d Dept: 82 AD3d 796 (Suffolk)	denied 6/27/11 (Ciparick, J.)
People v Williams (Shaka)	3d Dept: 83 AD3d 1290 (Broome)	denied 6/24/11 (Smith, J.)
People v Williams (Willie)	App Div, 2d Dept: 2011 NY Slip Op 69056(U) (Dutchess)	dismissed 6/8/11 (Smith, J.)
People v Wilson (James)	App Term, 2d Dept: 30 Misc 3d 138(A) (Kings)	denied 6/23/11 (Read, J.)
People v Wilson (Kim)	App Div, 4th Dept, 5/2/11 (Monroe)	denied reconsideration 6/29/11 (Ciparick, J.)
People v Woodard	4th Dept: 83 AD3d 1440 (Monroe)	denied 6/22/11 (Pigott, J.)
People v Woods	2d Dept: 80 AD3d 718 (Kings)	denied 6/15/11 (Lippman, Ch. J.)
People v Wright	3d Dept: 81 AD3d 1161 (Albany)	denied 6/15/11 (Pigott, J.)
People v Yeong Sook Shin	App Div, 1st Dept: 2011 NY Slip Op 62740(U) (NY)	denied 6/30/11 (Read, J.)
